

IN THE COURT OF RAVI KUMAR SONDHI,
(UID No. HR-0026)
SESSIONS JUDGE,
cum.
SPECIAL JUDGE
(Under Companies Act, 2013)
GURUGRAM.

Case Type : **Criminal Complaint No. 3 of 18.05.2019**
CIS No. : **COMA/05/2019**
CNR No. : **HRGR01-007022-2019**
Date of Order : **03.06.2019.**

Serious Fraud Investigation Office, through Sh. Prashant Baliyan, Deputy Director & Investigating Officer, 2nd Floor, Pandit Deendayal Antyodaya Bhawan, CGO Complex, Lodhi Road, New Delhi – 110003

.....Complainant.

Versus

1. Adarsh Buildestate Limited, through its Authorized Representative, 1st, Floor, Block-B, Vatika Artium, Gold Course Road, Sector-53, Gurugam, Haryana-122003.
2. Aaditya Mega Projects Private Limited, through its Authorized Representative, House No.19A, Old Fatehpura, Triveni ki Gali, Udaipur, Rajasthan.
3. Adarsh Agro Seeds Private Limited, through its Authorized Representative, Shop No-GF 116-G, Sushant Shopping Arcade Building Sushant Lok, Phase I, Gurugram, Haryana.
4. Adarsh Crops Private Limited, through its Authorized Representative, Shop No-GF 116-G, Sushant Shopping Arcade Building Sushant Lok, Phase-I, Gurugram, Haryana.
5. Adarsh Green Farming Private Limited, through its Authorized Representative, Shop No-GF 116-G, Sushant Shopping Arcade Building Sushant Lok, Phase I, Gurugram, Haryana.
6. Adarsh Organic Foods Private Limited, through its Authorized Representative, Shop No-GF 116-G, Sushant Shopping Arcade Building Sushant Lok, Phase I Gurugram, Haryana.
7. Adarsh Thoughtworks Private Limited, through its Authorized Representative, At: Flat No.9, 3rd Floor, Sujan Avenue Near Khadayata Colony, Ellisbridge Ahmedabad, Gujarat.

8. Ansh Build Estate Private Limited, through its Authorized Representative, At: Shop No-GF 116-G, Sushant Shopping Arcade Building Sushant Lok, Phase I Gurugram, Haryana.
9. Applique Buildestate Private Limited, through its Authorized Representative, At: Shop No-GF 116-G, Sushant Shopping Arcade Building Sushant Lok, Phase I Gurugram, Haryana.
10. Arizona Realestate Private Limited, through its Authorized Representative, At: J 7, Moti Doongri Road, Jaipur, Rajasthan.
11. Aryarth Capital Enterprises Private Limited, through its Authorized Representative, At: Shop No-GF 116-G, Sushant Shopping Arcade Building Sushant Lok, Phase I Gurugram, Haryana.
12. Asha Agro Seeds Private Limited, through its Authorized Representative, At: Shop No-GF 116-G, Sushant Shopping Arcade Building Sushant Lok, Phase I Gurugram, Haryana.
13. Asha Crops and Agriculture Private Limited, through its Authorized Representative, At: Shop No-GF 116-G, Sushant Shopping Arcade Building, Sushant Lok, Phase I Gurugram, Haryana.
14. Asha Kisan Agro Private Limited, through its Authorized Representative, At: Shop No-GF 116-G, Sushant Shopping Arcade Building Sushant Lok, Phase I Gurugram, Haryana.
15. Bathing Sun Realty Private Limited, through its Authorized Representative, At: Shop No-GF 116-G, Sushant Shopping Arcade Building Sushant Lok, Phase I Gurugram, Haryana.
16. Best Buildcreations Private Limited, through its Authorized Representative, At: Shop No-GF 116-G, Sushant Shopping Arcade Building Sushant Lok, Phase I Gurugram, Haryana.
17. Big Blue Developers Private Limited, through its Authorized Representative, At: Shop No-GF 116-G, Sushant Shopping Arcade Building Sushant Lok, Phase I Gurugram, Haryana.
18. Blue Water Realty Private Limited, through its Authorized Representative, At: Near Elements Mall, P. No. 18, Bhirgu Nagar, Scheme - 9, Ajmer Road, Jaipur, Rajasthan.
19. Bondi Builders & Developers Private Limited, through its Authorized Representative, At: Shop No-GF 116-G, Sushant Shopping Arcade Building Sushant Lok, Phase I Gurugram, Haryana.

20. Bramha Infracon Private Limited, through its Authorized Representative, At: Shop No-GF 116-G, Sushant Shopping Arcade Building Sushant Lok, Phase I Gurugram, Haryana.
21. Chevron Buildcon Private Limited, through its Authorized Representative, At: Shop No-GF 116-G, Sushant Shopping Arcade Building Sushant Lok, Phase I Gurugram, Haryana.
22. Daisy Infratech Private Limited, through its Authorized Representative, At: Shop No-GF 116-G, Sushant Shopping Arcade Building Sushant Lok, Phase I Gurugram, Haryana.
23. Deniz Builders & Developers Private Limited, through its Authorized Representative, At: Shop No-GF 116-G, Sushant Shopping Arcade Building Sushant Lok, Phase I Gurugram, Haryana.
24. Divya Buildcreations Private Limited, through its Authorized Representative, At: J 7, Moti Doongri Road, Jaipur, Rajasthan.
25. Divyahome Projects Private Limited, through its Authorized Representative, At: J 7, Moti Doongri Road, Jaipur, Rajasthan.
26. Earth Buildcreation Private Limited, through its Authorized Representative, At: J 7, Moti Doongri Road, Jaipur, Rajasthan.
27. Entice Realtech Private Limited, through its Authorized Representative, At: Shop No-GF 116-G, Sushant Shopping Arcade Building Sushant Lok, Phase I, Gurugram, Haryana.
28. Eshwar Buildtech Private Limited, through its Authorized Representative, At: Shop No-GF 116-G, Sushant Shopping Arcade Building Sushant Lok, Phase I Gurugram, Haryana.
29. Gajanan Infrabuild Private Limited, through its Authorized Representative, At: Shop No-GF 116-G, Sushant Shopping Arcade Building Sushant Lok, Phase I Gurugram, Haryana.
30. Govindam Buildstates Private Limited, through its Authorized Representative, At: Shop No-GF 116-G, Sushant Shopping Arcade Building Sushant Lok, Phase I Gurugram, Haryana.
31. Maisonette Infraestates Private Limited, through its Authorized Representative, At: # 1008 Sector-19B Chandigarh.
32. Marven Buildcon Private Limited, through its Authorized Representative, At: Shop No-GF 116-G, Sushant Shopping Arcade

Building Sushant Lok, Phase I Gurugram, Haryana.

33. Marven Greenhomes Private Limited, through its Authorized Representative, At: J 7, Moti Doongri Road, Jaipur, Rajasthan.

34. Mascot Infrabuild Private Limited, through its Authorized Representative, At: Shop No-GF 116-G, Sushant Shopping Arcade Building Sushant Lok, Phase I Gurugram, Haryana.

35. Nirwana Buildcon Private Limited, through its Authorized Representative, At: Shop No-GF 116-G, Sushant Shopping Arcade Building Sushant Lok, Phase I Gurugram, Haryana.

36. Pan Infratech Private Limited, through its Authorized Representative, At: Shop No-GF 116-G, Sushant Shopping Arcade Building Sushant Lok, Phase I Gurugram, Haryana.

37. Park Dublin Builders Private Limited, through its Authorized Representative, At: Shop No-GF 116-G, Sushant Shopping Arcade Building Sushant Lok, Phase I Gurugram, Haryana.

38. Parthsarthi Megamalls Private Limited, through its Authorized Representative, At: Shop No-GF 116-G, Sushant Shopping Arcade Building Sushant Lok, Phase I Gurugram, Haryana.

39. Pine Infracon Private Limited, through its Authorized Representative, At: Near Elements Mall, P. No. 18, Bhirgu Nagar, Scheme - 9, Ajmer Road, Jaipur, Rajasthan.

40. Prime Time Infraprojects Private Limited, through its Authorized Representative, At: Elements Mall, Near DCM Market, Ajmer Road, Jaipur, Rajasthan.

41. Raghuvanshi Realestates Private Limited, through its Authorized Representative, At: Shop No-GF 116-G, Sushant Shopping Arcade Building Sushant Lok, Phase I Gurugram, Haryana.

42. Redkey Buildcon Private Limited, through its Authorized Representative, At: Shop No-GF 116-G, Sushant Shopping Arcade Building Sushant Lok, Phase I Gurugram, Haryana.

43. Reed Promoters & Developers Private Ltd., through its Authorized Representative, At: Shop No-GF 116-G, Sushant Shopping Arcade Building Sushant Lok, Phase I Gurugram, Haryana.

44. Sambhav Township Private Limited, through its Authorized

Representative, At: Shop No-GF 116-G, Sushant Shopping Arcade Building Sushant Lok, Phase I Gurugram, Haryana.

45. Shack Infrastructure Private Limited, through its Authorized Representative, At: Shop No-GF 116-G, Sushant Shopping Arcade Building Sushant Lok, Phase I Gurugram, Haryana.

46. Shourya Buildstates Private Limited, through its Authorized Representative, At: Shop No-GF 116-G, Sushant Shopping Arcade Building Sushant Lok, Phase I Gurugram, Haryana.

47. Star Buildstates Private Limited, through its Authorized Representative, At: Shop No-GF 116-G, Sushant Shopping Arcade Building Sushant Lok, Phase I Gurugram, Haryana.

48. Sun Dream build Private Limited, through its Authorized Representative, At: Shop No-GF 116-G, Sushant Shopping Arcade Building Sushant Lok, Phase I Gurugram, Haryana.

49. Tectonic Infrastructure Private Limited, through its Authorized Representative, At: Shop No-GF 116-G, Sushant Shopping Arcade Building Sushant Lok, Phase I, Gurugram, Haryana.

50. Valerian Buildtech Private Limited, through its Authorized Representative, At: S-707, Road No.6, Vishwakarma Industrial Area, Jaipur, Rajasthan.

51. Vasudev Infra Buildcon Private Limited, through its Authorized Representative, At: Shop No-GF 116-G, Sushant Shopping Arcade Building Sushant Lok, Phase I Gurugram, Haryana.

52. Vasudha Realcon Private Limited, through its Authorized Representative, At: Shop No-GF 116-G, Sushant Shopping Arcade Building Sushant Lok, Phase I Gurugram, Haryana.

53. Victory Buildstates Private Limited, through its Authorized Representative, At: Shop No-GF 116-G, Sushant Shopping Arcade Building Sushant Lok, Phase I Gurugram, Haryana.

54. Vishavam Infrabuild Private Limited, through its Authorized Representative, At: House No- 19, Bold Fatehpura, Udaipur, Rajasthan.

55. Vista Dream Homes Private Limited, through its Authorized Representative, At: Shop No-GF 116-G, Sushant Shopping Arcade Building Sushant Lok, Phase I, Gurugram, Haryana.

56. Vrindavan Dreamestates Private Limited, through its Authorized Representative, At: Shop No-GF 116-G, Sushant Shopping Arcade Building Sushant Lok, Phase I Gurugram, Haryana.
57. Waterfall Real Estates Private Limited, through its Authorized Representative, At: J 7, Moti Doongri Road, Jaipur, Rajasthan.
58. Glorious Realhome Private Limited, through its Authorized Representative, At: J 7, Moti Doongri Road, Jaipur, Rajasthan.
59. Mother Land Buildhomes Private Limited, through its Authorized Representative, At: J 7, Moti Doongri Road, Jaipur, Rajasthan.
60. Gharonda Buildstates Private Limited, through its Authorized Representative, At: J 7, Moti Doongri Road, Jaipur, Rajasthan.
61. Ghanta Karn Buildstates & Land Developers Pvt Ltd., through its Authorized Representative, At: Modi Lane Sirohi, Rajasthan.
62. Sambhav Energy Limited, through its Authorized Representative, At: No.5, Damodaran Street Kilpauk, Chennai, Tamil Nadu.
63. Dwell Buildstates Private Limited, through its Authorized Representative, At: J 7, Moti Doongri Road, Jaipur, Rajasthan.
64. Adarsh Tech Innovision Private Limited, through its Authorized Representative, At: Flat No.9, 3rd Floor, Sujan Avenue Near Khadayata Colony, Ellisbridge, Ahmedabad, Gujarat.
65. Fracton Technologies Private Limited, through its Authorized Representative, At: Shop No-GF 116-G, Sushant Shopping Arcade Building Sushant Lok, Phase I Gurugram, Haryana.
66. Vaayu Build Tech Private Limited, through its Authorized Representative, At: SF 14, Gayatri Nagar Hiran Magri, Sector - 5 Udaipur, Rajasthan.
67. Shree Veerji Battery Private Limited, through its Authorized Representative, At: Modi Lane Sirohi, Rajasthan.
68. Virendra Modi Buildestate Pvt Ltd, through its Authorized Representative, At: Kutumb Near Adarsh Nagar, Sirohi, Rajasthan.
69. Aryarth Agrichem Private Limited, through its Authorized Representative, At: Shop No-GF 116-G, Sushant Shopping Arcade

Building Sushant Lok, Phase I Gurugram, Haryana.

70. Adarsh Producers Limited, through its Authorized Representative, At: Flat No.9, 3rd Floor, Sujan Avenue Near Khadayata Colony, Ellisbridge, Ahmedabad, Gujarat.

71. Sidhartha Ahar Vihar Udyan Private Limited, through its Authorized Representative, At: Plot No. 2, Shop No. 1 and 4, Local Shopping Center Pushp Vihar Madangir, Delhi, 110062.

72. CSN Estates Private Limited, through its Authorized Representative, At: Plot No. 2, Shop No. 1 and 4, Local Shopping Center Pushp Vihar Madangir, Delhi, 110062.

73. Palm Tree Buildcon Pvt Ltd, through its Authorized Representative, At: 258, Satyam Tower, Opposite Jwalaheri Market, Paschim Vihar, New Delhi 110063.

74. Rosemary Buildcon Private Limited, through its Authorized Representative, At: 258, Satyam Tower, Opposite Jwalaheri Market, Paschim Vihar, New Delhi 110063.

75. Sidhartha Buildtech Private Limited, through its Authorized Representative, At: C- 109, Ground Floor, Hari Nagar, Clock Tower New Delhi 110064.

76. NA Developers Private Limited, through its Authorized Representative, At: Plot No. 2, Shop No. 1 and 4, Local Shopping Center Pushp Vihar Madangir, Delhi, 110062.

77. Ish Kripa Properties Private Limited, through its Authorized Representative, At: Plot No. 6, Sector 44, Gurugram, 122003.

78. Sidhartha Buildhome Private Limited, through its Authorized Representative, At: Plot No. 2, Shop No. 1 and 4, Local Shopping Center Pushp Vihar Madangir, Delhi, New Delhi 110062.

79. A3G Infra Private Limited, through its Authorized Representative, At: H.No.-104, Sector-23A, Chandigarh-160022, Chandigarh.

80. Prince Realbuild Private Limited, through its Authorized Representative, At: S-518, Basement Greater Kailash, Part I, New Delhi 110048.

81. HNS Infratech Private Limited, through its Authorized Representative, At: 10-A, Ground Floor, BPTP Park Centra, Sector 30,

Gurugram, Haryana – 122001.

82. HNS Projects Private Limited, through its Authorized Representative, At: 10-A, Ground Floor, BPTP Park Centra, Sector 30, Gurugram, Haryana 122001.

83. Sears Built Private Limited, through its Authorized Representative Amal Dey, At: 11 No. Govt. Place East, Mazzanine Floor, Kolkata, West Bengal 700069.

84. Abhay K Shah & Associates, through its Authorized Representative, At: 6th Floor, Manglam Fun Square, Durga Nursery, Udaipur, Rajasthan.

85. Axtron Tex Chem (I) Pvt Ltd., through its Authorized Representative, Jainam Rathod, At: F-7 & F-9, Riico Industrial Area, Sirohi Road, RJ 307022.

86. Laxmikripa Buildcon Pvt Ltd, through its Authorized Representative Saurabh Tak, At:103, Parshwanath Complex, Bhatt Ji Ki Badi, Udaipur, Rajasthan-313001.

87. Riddhi Siddhi Infraprojects Pvt Ltd, through its Authorized Representative Saurabh Tak, At: Corporate Tower, Rsg The Universe Campus, Hiran Magri Extension, Opposite Sector-9, Udaipur, Rajasthan-313001.

88. Riddhi Siddhi Infratech Pvt Ltd, through its Authorized Representative Saurabh Tak, At: Corporate Tower, Rsg The Universe Campus, Hiran Magri Extension, Opposite Sector-9, Udaipur, Rajasthan-313001.

89. S L Bohra & Associates, through its Authorized Representative Raj Kumar Bohra, At: Shop No. 39-40, Ashwini Bazaar, Udaipur City, Udaipur, Rajasthan-313001.

90. Cynosure Real Estates Pvt Ltd, through its Authorized Representative, At: 2586, Ground Floor, Nai Basti, Naya Bazar, Delhi-110006, Delhi.

91. EOS Developers Pvt Ltd, through its Authorized Representative, At: T15, UG, Green Park Main, New Delhi-110019, Delhi.

92. Adler Infra Ventures Pvt Ltd, through its Authorized Representative, At: 17/207, Heritage City, Mg Road, Metro Station, Gurugram – 122002, Haryana.

93. Headstrong International Exports Pvt Ltd, through its Authorized Representative, At: H.No. B-132, G/F, Anand Vihar, New Delhi-110092, Delhi.
94. Aarti Marketing Private Limited, through its Authorized Representative, At: B-132, Anand Vihar, Delhi – 110092.
95. Caranation Trading Private Limited, through its Authorized Representative, At: 22, Mausam Vihar, Delhi – 110051.
96. Cyan Financial Solutions Pvt Ltd, through its Authorized Representative, At: 2586, Ground Floor Nai Basti Delhi, North Delhi 110066.
97. Lever Finvest Private Limited, through its Authorized Representative, At: B-132, Anand Vihar, Delhi 110092.
98. Rolex Exports Private Limited, through its Authorized Representative, At: Flat No 206 4832/24, Ansari Road Daryaganj, New Delhi -110002.
99. Dinkar Commercials Pvt Ltd, through its Authorized Representative, At: 14/5, Basment Old Rajinder Nagar, New Delhi 110060.
100. Amarendra Financial Private Limited, through its Authorized Representative, At: 14/5, Basment Old Rajinder Nagar, New Delhi DL 110060.
101. Alba Polymers Limited, through its Authorized Representative, At: Office No. 303, IInd Floor, Plot No. 13-A, Veer Savarkar Complex, Veer Savarkar Block, Shakarpur Delhi East, Delhi 110092.
102. Channel Nine Entertainment Limited, through its Authorized Representative, At: 3/12, Ground Floor, Asaf Ali Road, New Delhi 110002.
103. Funny Software Limited, through its Authorized Representative, At: Office No 208, 2nd Floor, Plot No. A-1 Madhuban Tower, Veer Savarkar Block, Shakarpur Delhi, East Delhi 110092.
104. Gold Line International Finvest Ltd, through its Authorized Representative, At: Flat No. 116, First Floor, Hemkunt Chamber, 89, Nehru Place New Delhi, South Delhi 110019.

105. Inceptum Enterprises Limited, through its Authorized Representative, At: B-10, Near Muskan Restaurant Keshav Chowk Panchshe Naveen Shahdara New Delhi 110032.

106. Kanak Krishi Implements Limited, through its Authorized Representative, At: Shop No. 1, Plot No. 10, Bala Ji Enclave, Sadarpur Road, Near Harsaon Police Line, Govind Puram Ghaziabad 201013.

107. Padmawati Art Creation Pvt Ltd, through its Authorized Representative, At: 104 Olympic Complex, Jodhpur Rajasthan 342003.

108. Porsche Capital Market Limited, through its Authorized Representative, At: K H - 810, 2ND Floor Mahipal Pur Extension (Near Maruti Work Shop) New Delhi, South West, Delhi 110037.

109. Sagitarius Advertising Limited, through its Authorized Representative, At: Office No- 103, 1st Floor, Plot No.2, Triveni Complex, Veer Savarkar Block, Shakarpur Delhi, East Delhi 110092.

110. Satkar Finlease Limited, through its Authorized Representative, At: 829, Laxmideep Building, 8th Floor, District Centre, Next To V3s Mall, Laxmi Nagar Delhi 110092.

111. Surya Marketing Limited, through its Authorized Representative, At: House No.4346, Ground Floor, Gali No. 4C Ansari Road, Darya Ganj New Delhi 110002.

112. Vishal Digital Studio Color Lab Pvt Ltd, through its Authorized Representative, At: Plot No. 2, Office No. 103, F/F Veer Savarkar Block, Triveni Complex, Shakarpur, Near Madhuban Sweets, East Delhi 110092.

113. Mukesh Modi, At: A-10, Adarsh Nagarsirohi 307001, Rajasthan
Director/Ex-Director In:

Adarsh Agro Seeds Private Limited, Adarsh Buildestate Limited, Adarsh Crops Private Limited, Adarsh Green Farming Private Limited, Adarsh Organic Foods Private Limited, Adarsh Producer Company Limited, Adarsh Tech Innovision Private Limited, Adarsh Thoughtworks Private Limited, Aryarth Agrichem Private Limited, Aryarth Capital Enterprises Private Limited, Asha Agro Seeds Private Limited, Asha Crops And Agriculture Private Limited, Asha Kisan Agro Private Limited, Fracton Technologies Private Limited, Ghantakarn Buildestate And Land Developers Private Limited, Riddhi Siddhi Infraprojects Private Limited, Sambhav Energy Limited, Vaayu Build Tech Private Limited.

114. Rahul Virendra Modi, At: Modi House, Adarsh Nagar, Sirohi

307001, Rajasthan,

Director/Ex-Director In:

Ariizona Realestate Private Limited, Aryarth Agrichem Private Limited, Asha Agro Seeds Private Limited, Asha Crops And Agriculture Private Limited, Asha Kisan Agro Private Limited, Divyahome Buildcreations Private Limited, Dwell Buildstates Private Limited, Fracton Technologies Private Limited, Gharonda Buildstates Private Limited, Glorious Realhomes Private Limited, Maisonette Infra Estates Private Limited, Mother Land Buildhome Private Limited, Sambhav Township Private Limited.

115. Vivek Harivyasi At: Khora Seri, Sadar Bazar, Sirohi 307001, Rajasthan.

Also At:

Dev Nagritakriya Sirohi 307001, Rajasthan.

Director/Ex-Director In:

A3G Infra Private Limited, Aaditya Mega Projects Private Limited, Adarsh Buildestate Limited, Adarsh Thoughtworks Private Limited, Adler Infra Ventures Private Limited, Ansh Buildstates Private Limited, Applique Buildestate Private Limited, Ariizona Realestate Private Limited, Aryarth Capital Enterprises Private Limited, Bathing Sun Reality Private Limited, Blue Water Realty Private Limited, Bondi Builders & Developers Private Limited, Bramha Infracon Private Limited, Cynosure Real Estates Private Limited, Deniz Builders & Developers Private Limited, Dwell Buildstates Private Limited, Earth Buildcreation Private Limited, Entice Realtech Private Limited, Eos Developers Private Limited, Eshwar Buildtech Private Limited, Glorious Realhomes Private Limited, Govindam Buildstates Private Limited, Headstrong International Exports Private Limited, Laxmikripa Buildcon Private Limited, Maisonette Infra Estates Private Limited, Nirwana Buildcon Private Limited, Pan Infratech Private Limited, Park Dublin Builders Private Limited, Pine Infracon Private Limited, Primetime Infra Projects Private Limited, Redkey Buildcon Private Limited, Reed Promoters & Developers Private Limited, Riddhi Siddhi Infraprojects Private Limited, Sambhav Township Private Limited, Star Buildstates Private Limited, Sun Dreambuild Private Limited, Valerian Buildtech Private Limited, Vasudev Infra Buildcon Private Limited, Vishvam Infra Build Private Limited, Vista Dream Homes Private Limited, Vrindavan Dreamestates Private Limited And Waterfall Real Estates Private Limited.

116. Nitin Rathore, At: Amar Marketing, Oasis, Cellularopp, Ganga Ji Temple, Amba Ji Road, Abu, Road, Sirohi 307001, Rajasthan.

Director/Ex-Director In:

(Ravi Kumar Sondhi)

(UID No. HR-0026)

SJ, GGM, 03.06.2019

Satish Kumar

Best Buildcreations Private Limited, Big Blue Developers Private Limited, Chevron Buildcon Private Limited, Divyahome Buildcreations Private Limited, Divyahome Projects Private Limited, Gajanan Infrabuild Private Limited, Glorious Realhomes Private Limited, Marven Buildcon Private Limited, Marven Greenhomes Private Limited, Reed Promoters & Developers Private Limited, Sambhav Township Private Limited And Shourya Buildstates Private Limited.

117. Priyanka Modi, At: 89-D, Bhagat Ki Kothi, Extension Scheme, Pali Road, Jodhpur 342005, Rajasthan,

Also At:

46, Modi Line, Chhoti Brahmapuri, Sirohi 307001, Rajasthan.

Director/Ex-Director In:

Adarsh Agro Seeds Private Limited, Adarsh Crops Private Limited, Adarsh Green Farming Private Limited, Adarsh Organic Foods Private Limited, Ariizona Realstate Private Limited, Divyahome Buildcreations Private Limited, Dwell Buildstates Private Limited, Gharonda Buildstates Private Limited, Glorious Realhomes Private Limited, Mother Land Buildhome Private Limited And Sambhav Township Private Limited.

118. Jinendra Vyas, At: House No. 365, J - One Road, Bhupalpura, Udaipur 313001, Rajasthan.

Director/Ex-Director In:

Applique Buildestate Private Limited, Big Blue Developers Private Limited, Chevron Buildcon Private Limited, Divyahome Buildcreations Private Limited, Divyahome Projects Private Limited, Dwell Buildstates Private Limited, Earth Buildcreation Private Limited, Eshwar Buildtech Private Limited, Gajanan Infrabuild Private Limited, Gharonda Buildstates Private Limited, Mother Land Buildhome Private Limited, Parthsarathi Megamalls Private Limited, Reed Promoters & Developers Private Limited, Shack Infrastructure Private Limited, Tectonic Infrastructure Private Limited And Vasudev Infra Buildcon Private Limited.

119. Vinay Kumpawat, At: 38, Guru Jambeshwar Nagar, Vaishali Nagar, Jaipur,302021, Rajasthan, India,

Also At:

Didwana Kuchaman Road, W. No.-8, Nagoor 341303, Rajasthan,

Director/Ex-Director In:

Aaditya Mega Projects Private Limited, Adarsh Buildestate Limited,

Applique Buildestate Private Limited, Bondi Builders & Developers Private Limited, Maisonette Infra Estates Private Limited, Nirwana Buildcon Private Limited, Pan Infratech Private Limited, Parthsarthi Megamalls Private Limited, Primetime Infra Projects Private Limited, Riddhi Siddhi Infraprojects Private Limited, Shack Infrastructure Private Limited, Tectonic Infrastructure Private Limited And Valerian Buildtech Private Limited.

120. Vaibhav Lodha, At: 89-D, Bhagat Ki Kothi Extension, New Pali Road, Jodhpur 342005, Rajasthan.

Director/Ex-Director In:

Adarsh Buildestate Limited, Chevron Buildcon Private Limited, Daisy Infratech Private Limited, Divyahome Projects Private Limited, Gajanan Infrabuild Private Limited, Govindam Buildstates Private Limited, Marven Greenhomes Private Limited, Mascot Infrabuild Private Limited, Pine Infracon Private Limited, Sambhav Township Private Limited, Shourya Buildstates Private Limited, Star Buildstates Private Limited, Sun Dreambuild Private Limited, Vasudha Realcon Private Limited, Victory Buildstates Private Limited.

121. Paras Bolia, At: 14, Gayatri Nagar, Hiran Magri, Sector - 5, Udaipur-313001, Rajasthan.

Director/Ex-Director In:

Riddhi Siddhi Infratech Limited And Vaayu Build Tech Private Limited

122. Virender Modi, At: Modi Street, Sirohi 307001, Rajasthan.

Director/Ex-Director In:

Adarsh Buildestate Limited, Adarsh Producer Company Limited, Adarsh Tech Innovision Private Limited, Adarsh Thoughtworks Private Limited, Ghantakarn Buildestate And Land Developers Private Limited, Sambhav Energy Limited, Virendra Modi Buildestate Private Limited.

123. Rohit Modi, At: Modi Street, Sirohi 307001, Rajasthan.

Director/Ex-Director In:

Adarsh Buildestate Limited, Ansh Buildstates Private Limited, Aryarth Capital Enterprises Private Limited, Bathing Sun Reality Private Limited, Best Buildcreations Private Limited, Big Blue Developers Private Limited, Bondi Builders & Developers Private Limited, Bramha Infracon Private Limited, Deniz Builders & Developers Private Limited, Entice Realtech Private Limited, Marven Buildcon Private Limited, Mascot Infrabuild Private Limited, Mother Land Buildhome Private Limited, Nirwana Buildcon Private Limited, Park Dublin Builders Private Limited, Raghuvanshi Realestates Private Limited, Vasudev Infra Buildcon Private

Limited, Vasudha Realcon Private Limited And Vrindavan Dreamestates Private Limited.

124. Neha Gemawat, At: Modi Line, Sirohi 307001, Rajasthan,

Also At:

Vahitravas, Sirohi 307001, Rajasthan.

Director/Ex-Director In:

Applique Buildestate Private Limited, Blue Water Realty Private Limited, Divyahome Projects Private Limited, Earth Buildcreation Private Limited, Eshwar Buildtech Private Limited, Marven Greenhomes Private Limited, Shourya Buildstates Private Limited, Sun Dreambuild Private Limited, Valerian Buildtech Private Limited, Vishvam Infra Build Private Limited, Vista Dream Homes Private Limited And Waterfall Real Estates Private Limited.

125. Rajeshwar Singh, At: D-57, Hanuman Nagar, Vaishali Nagar, Jaipur 302021, Rajasthan.

Director/Ex-Director In:

Adarsh Buildestate Limited, Bathing Sun Reality Private Limited, Chevron Buildcon Private Limited, Entice Realtech Private Limited, Gajanan Infrabuild Private Limited, Govindam Buildstates Private Limited, Maisonette Infra Estates Private Limited, Nirwana Buildcon Private Limited, Pan Infratech Private Limited, Parthsarthi Megamalls Private Limited, Primetime Infra Projects Private Limited, Redkey Buildcon Private Limited, Reed Promoters & Developers Private Limited, Star Buildstates Private Limited, Vasudev Infra Buildcon Private Limited, Vista Dream Homes Private Limited And Vrindavan Dreamestates Private Limited.

126. Bharat Modi, At: Modi Lane, Sirohi 307001, Rajasthan.

Also At:

Sirohi Sunar Wada, Purani, Nagarpalika, Sirohi 307001, Rajasthan.

Director/Ex-Director In:

Aaditya Mega Projects Private Limited, Adarsh Buildestate Limited, Adarsh Producer Company Limited, Applique Buildestate Private Limited, Bondi Builders & Developers Private Limited, Ghantakarn Buildestate And Land Developers Private Limited, Pan Infratech Private Limited, Parthsarthi Megamalls Private Limited, Primetime Infra Projects Private Limited, Shack Infrastructure Private Limited, Shree Veerji Battery Private Limited And Tectonic Infrastructure Private Limited.

127. Abhay K Shah, At: 117, E Block, University Road Adarsh Nagar, Girwa, Udaipur 313001, Rajasthan.

Signing Auditor In:

Aaditya Mega Projects Private Limited, Adarsh Agro Seeds Private Limited, Adarsh Buildestate Limited, Adarsh Crops Private Limited, Adarsh Green Farming Private Limited, Adarsh Organic Foods Private Limited, Adarsh Producer Company Limited, Adarsh Tech Innovision Private Limited, Adarsh Thoughtworks Private Limited, Ansh Buildstates Private Limited, Applique Buildestate Private Limited, Ariizona Real estate Private Limited, Aryarth Agrichem Private Limited, Aryarth Capital Enterprises Private Limited, Asha Agro Seeds Private Limited, Asha Crops And Agriculture Private Limited, Asha Kisan Agro Private Limited, Bathing Sun Reality Private Limited, Best Buildcreations Private Limited, Big Blue Developers Private Limited, Blue Water Realty Private Limited, Bondi Builders & Developers Private Limited, Bramha Infracon Private Limited, Chevron Buildcon Private Limited, Daisy Infratech Private Limited, Deniz Builders & Developers Private Limited, Divyahome Buildcreations Private Limited, Divyahome Projects Private Limited, Dwell Buildstates Private Limited, Earth Buildcreation Private Limited, Eshwar Buildtech Private Limited, Fracton Technologies Private Limited, Gajanan Infrabuild Private Limited, Ghantakarn Buildestate And Land Developers Private Limited, Gharonda Buildstates Private Limited, Glorious Realhomes Private Limited, Govindam Buildstates Private Limited, Maisonette Infra Estates Private Limited, Mascot Infrabuild Private Limited, Mother Land Buildhome Private Limited, Nirwana Buildcon Private Limited, Pan Infratech Private Limited, Park Dublin Builders Private Limited, Parthsarthi Megamalls Private Limited, Pine Infracon Private Limited, Primetime Infra Projects Private Limited, Raghuvanshi Realestates Private Limited, Redkey Buildcon Private Limited, Reed Promoters & Developers Private Limited, Sambhav Energy Limited, Sambhav Township Private Limited, Shack Infrastructure Private Limited, Star Buildstates Private Limited, Sun Dreambuild Private Limited, Tectonic Infrastructure Private Limited, Vasudev Infra Buildcon Private Limited, Vasudha Realcon Private Limited, Victory Buildstates Private Limited, Vista Dream Homes Private Limited, Vrindavan Dreamestates Private Limited, Waterfall Real Estates Private Limited.

128. Manish Chaudhary, At: 112, Paschim Vihar, Jaipur 302021, Rajasthan.

Also At:

Shubham M.G. Road, Brampuri, Nagaur Post, Nagaur 341001, Rajasthan.

Director/Ex-Director In:

Adarsh Buildestate Limited, Bathing Sun Reality Private Limited, Entice

(Ravi Kumar Sondhi)

(UID No. HR-0026)

SJ, GGM, 03.06.2019

Satish Kumar

Realtech Private Limited, Pan Infratech Private Limited, Primetime Infra Projects Private Limited, Redkey Buildcon Private Limited, Reed Promoters & Developers Private Limited, Riddhi Siddhi Infracore Private Limited, Vasudev Infra Buildcon Private Limited And Vrindavan Dreamstates Private Limited.

129. Deepak Shrimali, At: 158, Navratan Complex, Bedia Road, Bhuwanaudaipur 313001, Rajasthan.

Director/Ex-Director In:

Aaditya Mega Projects Private Limited, Adler Infra Ventures Private Limited, Ansh Buildstates Private Limited, Ariizona Realestate Private Limited, Bathing Sun Reality Private Limited, Best Buildcreations Private Limited, Big Blue Developers Private Limited, Blue Water Realty Private Limited, Bondi Builders & Developers Private Limited, Bramha Infracore Private Limited, Chevron Buildcon Private Limited, Daisy Infratech Private Limited, Deniz Builders & Developers Private Limited, Entice Realtech Private Limited, Eos Developers Private Limited, Gajanan Infracore Private Limited, Gharonda Buildstates Private Limited, Headstrong International Exports Private Limited, Marven Buildcon Private Limited, Marven Greenhomes Private Limited, Mascot Infracore Private Limited, Mother Land Buildhome Private Limited, Nirwana Buildcon Private Limited, Pan Infratech Private Limited, Park Dublin Builders Private Limited, Parthsarathi Megamalls Private Limited, Pine Infracore Private Limited, Raghuvanshi Realestates Private Limited, Redkey Buildcon Private Limited, Reed Promoters & Developers Private Limited, Shack Infrastructure Private Limited, Shourya Buildstates Private Limited, Star Buildstates Private Limited, Sun Dreambuild Private Limited, Valerian Buildtech Private Limited, Vasudha Realcon Private Limited, Victory Buildstates Private Limited, Vishvam Infra Build Private Limited, Vista Dream Homes Private Limited, Vrindavan Dreamstates Private Limited And Waterfall Real Estates Private Limited.

130. Jainam Rathod, At: 407-409, JSS Road, 4th Floor, Flat No-22, Chiva Bazaar, Mumbai.

Director/Ex-Director In:

Axtron Texchem India Private Limited.

131. Ishwar Singh Sindal, At: 134, Zupa Ghat, Sirohi – Rarth Sirohi, Dist. Sirohi, 307001, Rajasthan,

Also At:

90/191, Adarash Nagar, Sirohi 307001, Rajasthan.

Director/Ex-Director In:

Adarsh Agro Seeds Private Limited, Adarsh Buildestate Limited, Asha Agro Seeds Private Limited, Asha Crops And Agriculture Private Limited, Asha Kisan Agro Private Limited And Chevron Buildcon Private Limited.

132. Meenakshi Modi, At: A-10, Adarsh Nagarsirohi 307001, Rajasthan

Also At:
Modi Lane, Sirohi, Rajasthan- 307001.

Director/Ex-Director In:
Adarsh Agro Seeds Private Limited, Adarsh Crops Private Limited, Adarsh Green Farming Private Limited, Adarsh Organic Foods Private Limited, Aryarth Agrichem Private Limited, Asha Agro Seeds Private Limited, Asha Crops And Agriculture Private Limited And Asha Kisan Agro Private Limited.

133. Prakash Chandra Purohit, At: Gali No. 2, Devnagri Tankriya, Sirohi- 307001, Rajasthan.

Also At:
Saroop Vilash Road, Dev Nagartakriya, District- Sirohi -307001, Rajasthan,

Director/Ex-Director In
Aaditya Mega Projects Private Limited, Adarsh Agro Seeds Private Limited, Adarsh Crops Private Limited, Adarsh Green Farming Private Limited, Adarsh Organic Foods Private Limited, Asha Agro Seeds Private Limited, Asha Crops And Agriculture Private Limited, Asha Kisan Agro Private Limited And Pine Infracon Private Limited.

134. Vivek Purohit, At: Gali No. 2, Devnagri Tankriya, Sirohi 307001, Rajasthan.

Director/Ex-Director In:
Ansh Buildestates Private Limited, Ariizona Real estate Private Limited, Best Buildcreations Private Limited, Blue Water Realty Private Limited, Chevron Buildcon Private Limited, Deniz Builders & Developers Private Limited, Divyahome Buildcreations Private Limited, Earth Buildcreation Private Limited, Eshwar Buildtech Private Limited, Gajanan Infrabuild Private Limited, Glorious Realhomes Private Limited, Marven Buildcon Private Limited, Mascot Infrabuild Private Limited, Park Dublin Builders Private Limited, Sambhav Energy Limited, Shack Infrastructure Private Limited, Star Buildestates Private Limited, Valerian Buildtech Private Limited, Vishvam Infra Build Private Limited, Vista Dream Homes Private Limited, Waterfall Real Estates Private Limited.

135. Sidharth Chauhan, At: Plot No-6, Sector-44, Gurugram, Haryana.

Director/Ex-Director In:

Sidhartha Ahar Vihar Udyan Private Limited, Csn Estates Private Limited, Rosemary Buildcon Private Limited, Sidhartha Buildtech Private Limited, Na Developers Private Limited, Ish Kripa Properties Private Limited, Sidhartha Buildhome Private Limited.

136. Akshat Singh, At: H.No.113, Sector-17A, Gurugram-122001, Haryana.

Also At:

Sector 17-A, Farrukh Nagar, Gurugram-122001, Haryana.

Director/Ex-Director In:

Chevron Buildcon Private Limited, Gajanan Infrabuild Private Limited, Reed Promoters & Developers Private Limited, Sidhartha Ahaar Vihar Udyan Privatelimited And Hns Projects Private Limited.

137. Shinder Pal Singh, At: #144, Sector-9B, Chandigarh 160009,

Director/Ex-Director In:

A3G Infra Private Limited.

138. Gurbir Singh Sandhu, At: # 104, Sector - 23 – A, Chandigarh 160023,

Director/Ex-Director In:

A3G Infra Private Limited

139. Naveen Kumar, At: House No.565, Pocket-A, Sector-22, Gurugram- 122001, Haryana.

Director/Ex-Director In

Big Blue Developers Private Limited And Prince Realbuild Private Limited

140. Surender Singh, At: WZ-176A, Basai Dara Pur, New Delhi 110015.

Director/Ex-Director In:

Gajanan Infrabuild Private Limited, Hns Infratech Private Limited And Hns Projects Private Limited.

141. Aditya Sarda, At: 3, Alipur Park, Kolkata.

Controller of:
Sears Bilt Private Limited.

142. Bharat Das Vaishnav, At: 101, Sadar Bazar, Sirohi 307001, Rajasthan.

Director/Ex-Director In:
Adarsh Thoughtworks Private Limited, Aryarth Capital Enterprises Private Limited, Big Blue Developers Private Limited, Bramha Infracon Private Limited, Daisy Infratech Private Limited, Dwell Buildstates Private Limited, Gharonda Buildstates Private Limited, Govindam Buildstates Private Limited, Pan Infratech Private Limited, Primetime Infra Projects Private Limited, Raghuvanshi Realestates Private Limited, Redkey Buildcon Private Limited, Reed Promoters & Developers Private Limited, Tectonic Infrastructure Private Limited And Victory Buildstates Private Limited.

143. Sudhir Punia, At: DX-166, Kendriya Vihar, Sector 56, Gurugram 124001, Haryana.

Director/Ex-Director In:
Aryarth Capital Enterprises Private Limited, Govindam Buildstates Private Limited, Mascot Infrabuild Private Limited, Raghuvanshi Realestates Private Limited, Vasudha Realcon Private Limited And Victory Buildstates Private Limited.

144. Joydeep Das Gupta, At: 224, FF, Indraprastha Colony, Sector- 30-33, Faridabad 121001, Haryana.

Director/Ex-Director In:
Bondi Builders & Developers Private Limited And Deniz Builders & Developers Private Limited.

145. Lovekush Sharma, At: Village & Post, Naithala, Bulandshahar 203001, Uttar Pradesh.

Director/Ex-Director In:
Bondi Builders & Developers Private Limited And Pan Infratech Private Limited.

146. Leena Harivyasi, At: Khoda Seri, Sadar Bazar, Sirohi 307001, Rajasthan.

Director/Ex-Director In:
Big Blue Developers Private Limited, Bramha Infracon Private Limited, Daisy Infratech Private Limited, Park Dublin Builders Private Limited,

Redkey Buildcon Private Limited, Star Buildstates Private Limited And
Tectonic Infrastructure Private Limited.

147. Vimal Sanwarmal Sharma, At: C 133F, Florance Marvel, Sushant
Lok 3,

Also At:

15-A, Agora Tower, Sector 59, TATA Raisina Residency, Gurugram
122001, Haryana,

Director/Ex-Director In:

Aryarth Capital Enterprises Private Limited, Chevron Buildcon Private
Limited, Fracton Technologies Private Limited And Gajanan Infrabuild
Private Limited.

148. Avanish Kumar Tyagi, At: Village Kakra, PO - Murad Nagar (Distt.
Ghaziabad), Murad Nagar 201206, Uttar Pradesh.

Director/Ex-Director In:

Deniz Builders & Developers Private Limited.

149. Vijay Shukla, At: 196, Hauz Khas Apartments (SFS), Hauz Khas,
New Delhi 110016.

Director/Ex-Director In:

Fracton Technologies Private Limited.

150. Ajit Singh Rathore, At: 167/1, Sadulpura Colony, Sirohi 307001,
Rajasthan.

Director/Ex-Director In:

Ansh Buildstates Private Limited, Blue Water Realty Private Limited,
Divyahome Projects Private Limited, Gajanan Infrabuild Private Limited,
Mascot Infrabuild Private Limited And Shourya Buildstates Private
Limited.

151. Poonam Madan, At: 53-B, Pocket A, Sukhdev Vihar, Delhi 110025.

Director/Ex-Director In:

Pan Infratech Private Limited.

152. Nazima Khan, At: 10, Rajhans Colony, Near 12 Mori, Brahampuri,
Jaipur 302002, Rajasthan.

Director/Ex-Director In:

Parthsarathi Megamalls Private Limited.

153. Shabbir Khan, At: 10, Rajhans Colony, Near 12 Mori, Brahampuri, Jaipur 302002, Rajasthan.

Director/Ex-Director In:
Parthsarthi Megamalls Private Limited.

154. Bharat Kumar Mardia, At: 13/3, Damodaran Street, Kellys, Kilpauk, Chennai 600010, Tamil Nadu.

Director/Ex-Director In:
Sambhav Energy Limited

155. Mahendra Kumar Tak, At: 71, Shanti Nagar, Sirohi 307001, Rajasthan.

Director/Ex-Director In:
Adarsh Producer Company Limited, Laxmikripa Buildcon Private Limited, Riddhi Siddhi Infraprojects Private Limited And Sambhav Energy Limited.

156. Praveen Maheshwarei, At: C-5, Sawai Jai Singh Highway, Bani Park, Jaipur 302016, Rajasthan.

Director/Ex-Director In:
Valerian Buildtech Private Limited

157. Rajeev Maheshwarei, At: C-5, Sawai Jai Singh Highway, Bani Park, Jaipur 302016, Rajasthan.

Director/Ex-Director In:
Valerian Buildtech Private Limited.

158. Ramlal Arya, Near Luhoro Ki Pole 54, Arya Samaj Road, Sirohi 307001, Rajasthan.

Director/Ex-Director In:
Ansh Buildestates Private Limited, Ariizona Realestate Private Limited, Bramha Infracon Private Limited, Daisy Infratech Private Limited, Deniz Builders & Developers Private Limited, Divyahome Buildcreations Private Limited, Divyahome Projects Private Limited, Marven Greenhomes Private Limited, Mascot Infrabuild Private Limited, Pine Infracon Private Limited, Sambhav Township Private Limited, Sun Dreambuild Private Limited, Vasudha Realcon Private Limited And Waterfall Real Estates Private Limited.

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SFIO Vs. Adarsh Buildestate Limited & others

159. Hemant Kumar Jain, At: H No - 3 - THHA - 7, Prabhat Nagar, Hiran Magri, Sector No- 5, Near Ambamata Park, Udaipur 313002, Rajasthan.

Director/Ex-Director In:

Adarsh Buildestate Limited, Adarsh Thoughtworks Private Limited, Aryarth Capital Enterprises Private Limited, Chevron Buildcon Private Limited, Deniz Builders & Developers Private Limited, Fracton Technologies Private Limited, Park Dublin Builders Private Limited, Raghuvanshi Realestates Private Limited, Sambhav Township Private Limited, Star Buildstates Private Limited.

160. Shiv Raj Sharma, At: Sarovar Nagar Itawa, Pipalda Kota, Kota 325004, Rajasthan.

Director/Ex-Director In:

Ansh Buildstates Private Limited, Best Buildcreations Private Limited, Blue Water Realty Private Limited, Chevron Buildcon Private Limited, Govindam Buildstates Private Limited, Sambhav Energy Limited, Vishvam Infra Build Private Limited, Waterfall Real Estates Private Limited.

161. Praveen Kumar, At: Dev Nagari Tankria, Gali No. 5, Sirohi, Sirohi 307001, Rajasthan.

Director/Ex-Director In:

Eshwar Buildtech Private Limited, Gajanan Infrabuild Private Limited, Gharonda Buildstates Private Limited, Marven Greenhomes Private Limited, Park Dublin Builders Private Limited, Raghuvanshi Realestates Private Limited, Sambhav Township Private Limited, Shourya Buildstates Private Limited And Star Buildstates Private Limited.

162. Naveen Choudhary, At: Purana Bus Station Ke Pass, Po-Kuchera, Nagaur 341024, Rajasthan.

Director/Ex-Director In:

Primetime Infra Projects Private Limited And Riddhi Siddhi Infraprojects Private Limited.

163. Megha Chauhan, At: Old Bus Stand, Rohatpali 306421, Rajasthan.

Director/Ex-Director In:

Riddhi Siddhi Infraprojects Private Limited.

164. Indu Tak, At: 71, Shanti Nagar, Sirohi 307001, Rajasthan.

(CNR No.HRGR01-007022-2019) (CIS No. COMA/5/2019) -23-
SFIO Vs. Adarsh Buildestate Limited & others

Director/Ex-Director In:

Adarsh Producer Company Limited And Riddhi Siddhi Infraprojects Private Limited.

165. Shyam Bihari Gupta, At: 424, Panchratna Complex, Fatehpura, Udaipur 313001, Rajasthan,

Director/Ex-Director In:

Laxmikripa Buildcon Private Limited, Riddhi Siddhi Infraprojects Private Limited And Riddhi Siddhi Infratech Limited.

166. Ravi Tak, At: Shrimal Nagar Bhinmal 343001 Rajasthan.

Director/Ex-Director In:

Riddhi Siddhi Infratech Limited.

167. Rajeev Verma, At: A-2, Sanjay Colony, Nehru Nagar, Jaipur 302016, Rajasthan.

Director/Ex-Director In:

Laxmikripa Buildcon Private Limited.

168. Sushil Maloo, At: 260 Himmat Nagar, Tonk Road, Jaipur 302018, Rajasthan

Director/Ex-Director In:

Laxmikripa Buildcon Private Limited.

169. Rajendra Singh Bhandari, At: 3 THA 55, Jawahar Nagar, Jaipur 302004, Rajasthan.

Director/Ex-Director In:

Laxmikripa Buildcon Private Limited.

170. Sudhir Mehta, At: 28, Mahaveer Nagar, Road No.2, Behind Tulsi Niketan, Sector 4, Hiran Magri, Udaipur-313001.

Signing Auditor In:

Laxmikripa Buildcon Private Limited, Riddhi Siddhi Infraprojects Private Limited, Riddhi Siddhi Infratech Limited.

171. Raj Kumar Bohra, At: Shop No. 39-40, Ashwini Bazaar, Udaipur City, Udaipur, Rajasthan-313001.

Signing Auditor In:

Riddhi Siddhi Infraprojects Private Limited, Laxmikripa Buildcon Private

(Ravi Kumar Sondhi)

(UID No. HR-0026)

SJ, GGM, 03.06.2019

Satish Kumar

Limited And Riddhi Siddhi Infratech Limited.

172. Saurabh Tak, At: 71, Shanti Nagar, Sirohi 306401, Rajasthan,

Director/Ex-Director In:
Riddhi Siddhi Infraprojects Private Limited.

173. Peeyush Aggarwal, At: B-132, Anand Vihar, Delhi-110092.

Signing Auditor of:
Adler Infra Ventures Private Limited, Cynosure Real Estates Private Limited, Eos Developers Private Limited, Headstrong International Exports Private Limited; and

Controller of:
Aarti Marketing Private Limited, Caranation Trading Private Limited, Cyan Financial Solutions Pvt Ltd, Lever Finvest Private Limited, Rolex Exports Private Limited.

174. Paramvir Singh Sangwan, At: H. No-133, National Media Centre, Shanker Chowk, National Highway No-8, Chakkarpur (74), Gurugram 122002, Haryana.

Director/Ex-Director In:
Cynosure Real Estates Private Limited.

175. Vijay Jhindal, At: S-520, Greater Kailash, New Delhi-110048.

Controller of:
Alba Polymers Limited, Channel Nine Entertainment Limited, Funny Software Limited, Gold Line International Finvest Ltd, Inceptum Enterprises Limited, Kanak Krishi Implements Limited, Padmawati Art Creation Pvt Ltd, Porsche Capital Market Limited, Sagitarius Advertising Limited, Satkar Finlease Limited, Surya Marketing Limited, Vishal Digital Studio Color Lab Pvt Ltd.

176. Rajkumar Modi, At: E-380. 1st Floor, Greater Kailash, Part-I, New Delhi-110048.

Controller of:
Dinkar Commercials Pvt Ltd And Amarendra Financial Private Limited.

177. Rajiv Kumar Rana, At: 197-B, Rajpur Road, Dehradun, 248001
Partner In:
ABL Projects,

Director/Ex-Director In:

Uttanchal Diagnostic Centre Limited, Ramapati Papires Udyog Private Limited, Rishika Financial Advisory Private Limited.

178. Mahesh Dutt Sharma, At: F-67, Major Shaitan Singh Colony, Shastri Nagar, Jaipur-302016.

Employee In:

Gajanan Infrabuild Private Limited, Adarsh Buildestate Limited.

179. Damyanti Bhandari, At: 383, Basera, Gandhi Nagar, Abu Road, Sirohi 307026, Rajasthan.

Director/Ex-Director In:

Adarsh Buildestate Limited, Adarsh Thoughtworks Private Limited, Mascot Infrabuild Private Limited, Mother Land Buildhome Private Limited And Vishvam Infra Build Private Limited.

180. Ichchhita Dungarwal, At: 6th Floor, Manglam Fun Square, Durga Nursery, Udaipur, Rajasthan

Signing Auditor In:

Star Buildstates Private Limited And Sun Dreambuild Private Limited.

181. Neha Kataria, At: 6th Floor, Manglam Fun Square, Durga Nursery, Udaipur, Rajasthan.

Signing Auditor In:

Aaditya Mega Projects Private Limited, Adarsh Producer Company Limited, Adarsh Tech Innovision Private Limited, Ansh Buildstates Private Limited, Applique Buildestate Private Limited, Aryarth Capital Enterprises Private Limited, Bathing Sun Reality Private Limited, Big Blue Developers Private Limited, Blue Water Realty Private Limited, Bramha Infracon Private Limited, Earth Buildcreation Private Limited, Entice Realtech Private Limited, Eshwar Buildtech Private Limited, Marven Buildcon Private Limited, Marven Greenhomes Private Limited, Park Dublin Builders Private Limited, Parthsarathi Megamalls Private Limited, Shourya Buildstates Private Limited, Star Buildstates Private Limited, Valerian Buildtech Private Limited, Vasudev Infra Buildcon Private Limited, Vishvam Infra Build Private Limited, Vrindavan Dreamestates Private Limited.

182. Nimesh Kumar Ramesh Chandra Soni, At: 6, Riddhiswar Society Bhimjipura Circle, Nava Vadaj Ahmedabad, 380013, Gujarat, India

Director/Ex-Director In:

Divyahome Buildcreations Private Limited, Ghantakarn Buildestate And

Land Developers Private Limited, Govindam Buildestates Private Limited, Pine Infracon Private Limited, Sun Dreambuild Private Limited, Vaayu Build Tech Private Limited, Vasudha Realcon Private Limited And Waterfall Real Estates Private Limited.

183. Rituraj Singh, At: Krangua Was Tehsil Sirohi, Sirohi 307001, Rajasthan, India.

Director/Ex-Director In:

Adarsh Thoughtworks Private Limited, Bramha Infracon Private Limited, Dwell Buildestates Private Limited, Eshwar Buildtech Private Limited, Mother Land Buildhome Private Limited And Sambhav Energy Limited.

184. Dushyant Singh Rathore, At: Dr. Sampurnanand Colony Sirohi 307001, Rajasthan, India.

Director/Ex-Director In:

Bramha Infracon Private Limited, Daisy Infratech Private Limited, Divyahome Projects Private Limited, Marven Greenhomes Private Limited, Mother Land Buildhome Private Limited, Shourya Buildestates Private Limited, Star Buildestates Private Limited And Sun Dreambuild Private Limited.

185. Shashank Shekhar Singh Rathore, At: B/3, Skl Villa, Sirsi Road Kanak Vrindavan Township, Dalpura, Jaipur,302012, Rajasthan, India.

Director/Ex-Director In:

Aryarth Capital Enterprises Private Limited, Chevron Buildcon Private Limited, Deniz Builders & Developers Private Limited, Gajanan Infrabuild Private Limited, Glorious Realhomes Private Limited, Raghuvanshi Realestates Private Limited And Vaayu Build Tech Private Limited.

186. Jitesh Kumar Parmar, At: Near Gayatri Mandirshahji Ki Wadi, Sirohi,307001, Rajasthan, India.

Director/Ex-Director In:

Ariizona Realestate Private Limited, Best Buildcreations Private Limited, Divyahome Buildcreations Private Limited, Dwell Buildestates Private Limited, Gharonda Buildestates Private Limited, Glorious Realhomes Private Limited And Govindam Buildestates Private Limited.

187. Mahesh Kumar Tak, At: 17A-Shanti Nagar, Sirohi, 300701, Rajasthan, India.

Director/Ex-Director In:

Riddhi Siddhi Infraprojects Private Limited, Riddhi Siddhi Infratech Limited.

.....Accused

Complaint as per the provisions of section 439(2), read with section 436 (1)(a), (d) & (2) read with section 212(15) of the Companies Act, 2013 read with 621(1) of the Companies Act, 1956 read with Section 50 of the Limited Liability Partnership Act, 2008, read with Section 193 of the Code of Criminal Procedure, 1973, seeking the prosecution of the accused named above for commission of offences as punishable under section Sections 447, 448, 143, 74(3), 76A, 144 read with 141(3)(e) read with 147, of the Companies Act 2013; Sections 58A (6) read with 58AAA, 211 read with 628, 227 read with 233 of the Companies Act 1956,; Sections 120B of the Indian Penal Code, 1860 read with 447 of the Companies Act, 2013, 406, 417, 418, 420, 467, 468, 471, 477A, 474 of the Indian Penal Code, 1860 read with 120B of the Indian Penal Code, 1860.

Argued by:

For the Complainant :

Shri Lokender Raghav, Senior Standing Counsel assisted by Shri Prashant Baliyan, Deputy Director & Investigating Officer, SFIO

ORDER:

1. This order is being passed to take cognizance against the accused persons on the basis of a complaint filed by the complainant-Serious Fraud Investigation Office through Shri Prashant Baliyan, Deputy Director & Investigating Officer (hereinafter referred as “**Complainant SFIO**” *for short*) as per the provisions of Section 439(2) of the Companies Act, 2013.

2. Needless to say the present complaint has been filed by the Complainant, SFIO as per the provisions of Section 439(2) and 436(1)(a),

(d) & (2) read with section 212(15) of the Companies Act 2013, read with 621(1) of the Companies Act, 1956, read with Section 50 of the Limited Liability Partnership Act, 2008 read with section 193 of the Code Of Criminal Procedure, 1973, on the basis of a Investigation report, after conducting the investigations as per the provisions of section 212 of the Companies Act, with request to take cognizance against the accused named herein above for the offences, committed by them jointly and severally as punishable under Sections 447, 448, 143, 74(3), 76A, 144 read with 141(3)(e) read with 147, of the Companies Act 2013; Sections 58A (6) read with 58AAA, 211 read with 628, 227 read with 233 of the Companies Act 1956; Sections 120B of the Indian Penal Code, 1860 read with 447 of the Companies Act, 2013, 406, 417, 418, 420, 467, 468, 471, 477A, 474 of the Indian Penal Code, 1860 read with 120B of the Indian Penal Code, 1860. For ready reference, the contents of the complaint are reproduced as under:-

“That the Complainant, i.e. Serious Fraud Investigation Office (hereinafter referred as the “**SFIO**”), is a statutory office constituted and established under section 211 of the Companies Act of 2013 (herein after referred as the **Act of 2013**).

That the present complaint is being filed seeking prosecution jointly and severally against the Accused Persons mentioned herein above from 1 to 182 for various violations & offences punishable under the provisions of Companies Act of 1956 (hereinafter referred as the “**Act of 1956**”), Act of 2013 of and also for committing of offences punishable under the provisions of the Indian Penal Code of 1860 (herein after referred as the “**I.P.C.**”).

That the complaint is being filed and represented through **Sh. Prashant Baliyan, Deputy Director & Investigating Officer**, in his official capacity acting and / or purporting to act as such Public Servant in discharge of his official duties conferred upon him by the Central Government, Ministry of Corporate Affairs (hereinafter referred as the “MCA”) vide order No. F. No. 4/2/2018/SFIO/CL-II, dated 11.09.2018, issued under section 439 (2) of the Companies Act 2013 r/w 621 (1) of the Companies Act, 1956. The Complainant has further been authorized by the Director, SFIO, vide Order No. SFIO/Pros/0010/2019/I/16869/2019 dated 16/05/2019, to file the present complaint. Copy of the orders dated 11.09.2018 & 16.05.2019 are annexed herewith and marked as **Annexure C-1 & Annexure C-2 respectively.**

That the MCA, in the public interest, formed its opinion that investigation into the affairs of **Adarsh Group of Companies and LLPs (125 Nos.) (“CUIs”)**, is necessary to be conducted by Inspectors of SFIO as to be nominated by Director, SFIO and accordingly passed an order dated **20.06.2018** in this regard in exercise of its powers conferred under section **212(1)(c) of the Companies Act 2013 and section 43 (2) & (3) (c) (i) of LLP Act 2008. Annexure C-3.**

That pursuant to the order of MCA dated 20.06.2018, the Director, SFIO, in exercise of its powers u/s 212(1) r/w 212 (4) of the Companies Act, 2013, and further as ordered above by MCA u/s 43 (2) of the LLP Act 2008, designated following officers of SFIO as Inspectors to carry out the investigation as directed by MCA :-

NAME OF THE INSPECTOR	DESIGNATION
Sh. P.C Maurya	Additional Director, SFIO
Sh. Prashant Baliyan	Deputy Director, SFIO & Investigating Officer
Sh. G.L Meena	Senior Assistant Director, SFIO
Sh. Kumar Gautam	Assistant Director, SFIO

Further, vide order dated 28.11.2018, Sh. Piyush Kumar was designated as an Inspector in place Sh. Kumar Gautam. Orders dated 20.06.2018 & 28.11.2018, designating Inspectors, are annexed herewith as **Annexure C-4 (Colly).**

That as stated above, the initial order of investigation was concerning 125 no. of CUIs. However, on basis of revelations made during the investigation and in exercise of powers laid down u/s 219 of the Companies Act, 2013, the Inspector sought approval from the MCA to investigate into the affairs of 20 more companies and 2 connected Directors/Employees.

That MCA, vide order dated 25.02.2019, granted approval to investigate into the affairs of the said 20 companies and two connected Directors/Employees. **Annexure C-5.**

That investigation was conducted as directed vide orders dated 20.06.2018 & 25.02.2019 and upon completion of the investigation by the Inspectors, the Investigation report dated 09.05.2019, in terms of Section 212 (12) of the Companies act of 2013 & S. 49 of the LLP Act, 2008, was submitted to the MCA on 09.05.2019. **A copy of the Investigation Report dated 09.05.2019, along with all its annexures, a list of which is given at page 242 to 254 of the said report, is collectively annexed hereto and marked as Annexure -C-6**

It is submitted that the Investigation report along with all its annexures are also being submitted in soft copy in a Pen Drive annexed as **Annexure C-7.**

1. That summary of findings/violations as per the investigation report are as under: -

Charge No.	Nature Of Charges	Name Of Persons Liable	Year	Relevant Section (Ref.)
CATEGORY: I - ADARSH GROUP OF COMPANIES AND LLPS (AGC&L)				
1	Fraud committed by the CUIs and its directors/ signatories	84 Companies 1 Auditor firm 29 Directors/ Employees (Detailed list given in charge no. 1 of Chapter – V)	2010-11 2011-12 2012-13 2013-14 2014-15 2015-16 2016-17	447 of the Companies Act 2013.

Charge No.	Nature Of Charges	Name Of Persons Liable	Year	Relevant Section (Ref.)
			2017-18	
1	Criminal conspiracy with the object to cheat.	84 Companies 1 Auditor firm 29 Directors/ Employees (Detailed list given in charge no. 1 of Chapter – V)	2010-11 2011-12 2012-13 2013-14 2014-15 2015-16 2016-17 2017-18	120B R/W 417, 418, 420 OF IPC, 1860.
1	Criminal breach of trust with the depositors of ACCSL.	1. Mukesh Modi	2010-11 to 2017-18	406 OF. IPC, 1860.
		2. Priyanka Modi	2011-12 to 2013-14	
		3. Rahul Modi	2014-15 to 2017-18	
1	Forgery.	1. Mukesh Modi 2. Rahul Modi 3. Rohit Modi 4. Vaibhav Lodha 5. Rajeshwar Singh 6. Vivek Purohit 7. Neha Gemawat 8. Jainam Rathod	2016-17	463 R/W 467 R/W 468 R/W 471 R/W 474 OF IPC, 1860.

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Charge No.	Nature Of Charges	Name Of Persons Liable	Year	Relevant Section (Ref.)
2	Acceptance of deposit by the CUIs in the garb of loans from ACCSL.	54 Companies 34 Individuals (Detailed list given in charge no. 2 of Chapter – V)	2010-11 2011-12 2012-13 2013-14	58A of the Companies Act 1956.
3	Acceptance of deposit by the CUIs in the garb of loans from ACCSL and not returned in one year.	54 Companies 34 Individuals (Detailed list given in charge no. 3 of Chapter – V)	2015-18	74(3) of the Companies Act 2013.
4	Acceptance of deposit by the CUIs in the garb of loans from ACCSL.	48 Companies 14 Individuals (Detailed list given in charge no.4 of Chapter – V)	2015-16 2016-17 2017-18	76A of the Companies Act 2013.
5	Falsification of Accounts.	70 Companies 1 Auditor firm 43 Individuals (Detailed list given in charge no. 5 of Chapter – V)	2010-11 2011-12 2012-13 2013-14 2014-15 2015-16 2016-17	628 & 211 of Companies Act, 1956 r/w 227 punishable u/s 233 of Companies Act, 1956 (for period till 31 st March 2014) & 448 & 143 punishable u/s 447 & 147 respectively of the Companies Act, 2013

Charge No.	Nature Of Charges	Name Of Persons Liable	Year	Relevant Section (Ref.)
				(for period after 31 st March 2014) & 477A of IPC, 1860.
CATEGORY: II - RIDDHI SIDDHI GROUP OF COMPANIES (RSGC)				
6	Fraud committed by the CUIs and its directors/ signatories.	1.Laxmikripa Buildcon Pvt Ltd. 2. Riddhi Siddhi Infraproject Pvt Ltd. 3. Ridhi Siddhi Infratech Pvt Ltd 4. SL Bohra & Company 5. Saurabh Tak 6. Mahendra Kumar Tak 7. Mukesh Kumar Modi 8. Vivek Harivyasi 9.Vinay Kumar(Kumpawat) 10. Naveen Choudhary 11. Manish Choudhary 12. Mahesh Kumar Tak 13. Megha Chauhan 14. Indu Tak 15. Paras Bolia 16. Shyam Bihari Gupta 17. Ravi Tak 18. Rajeev Verma 19. Sushil Maloo 20.Rajendra SinghBhandari 21. Raj Kumar Bohra 22. Sudhir Mehta 23. Rahul Modi 24. Priyanka Modi	2006-07 2007-08 2008-09 2009-10 2010-11 2011-12 2012-13 2013-14 2014-15 2015-16 2016-17 2017-18	447 of the Companies Act 2013.

Charge No.	Nature Of Charges	Name Of Persons Liable	Year	Relevant Section (Ref.)
6	Criminal conspiracy with the object to cheat.	1.Laxmi Kripabuildcon Pvt Ltd. 2. Riddhi SiddhiInfraproject Pvt Ltd. 3. Ridhi Siddhi InfratechPvt Ltd 4. SL Bohra & Company 5. Saurabh Tak 6. Mahendra Kumar Tak 7. Mukesh Kumar Modi 8. Vivek Harivyasi 9.Vinay Kumar(Kumpawat) 10. Naveen Choudhary 11. Manish Choudhary 12. Mahesh Kumar Tak 13. Megha Chauhan 14. Indu Tak 15. Paras Bolia 16. Shyam Bihari Gupta 17. Ravi Tak 18. Rajeev Verma 19. Sushil Maloo 20.Rajendra SinghBhandari 21. Raj Kumar Bohra 22. Sudhir Mehta 23. Rahul Modi 24. Priyanka Modi	2007-08 2008-09 2009-10 2010-11 2011-12 2012-13 2013-14 2014-15 2015-16 2016-17 2017-18	120B R/W 417, 418, 420 OF IPC, 1860.
7	Acceptance of deposit by the CUIs in the garb of loans from ACCSL.	1. Laxmi Kripabuildcon Pvt Ltd. 2. Riddhi SiddhiInfraproject	2010-11 2011-12 2012-	58A of the Companies Act 1956.

Charge No.	Nature Of Charges	Name Of Persons Liable	Year	Relevant Section (Ref.)
		Pvt Ltd. 3. Ridhi Siddhi Infratech Pvt Ltd. 4. Saurabh Tak 5. Mahendra Kumar Tak 6. Mukesh Kumar Modi 7. Vivek Harivyasi 8. Naveen Choudhary 9. Manish Choudhary 10. Mahesh Kumar Tak 11. Megha Chauhan 12. Indu Tak 13. Paras Bolia 14. Shyam Bihari Gupta 15. Ravi Tak 16. Rajeev Verma 17. Sushil Maloo 18. RajendraSinghBhandari 19. Sudhir Mehta	13 2013-14	
8	Acceptance of deposit by the CUIs in the garb of loans from ACCSL and not returned in one year.	1. Laxmi Kripabuildcon Pvt Ltd. 2. Riddhi SiddhiInfraproject Pvt Ltd. 3. Ridhi Siddhi InfratechPvt Ltd. 4. Saurabh Tak 5. Mahendra Kumar Tak 6. Mukesh Kumar Modi 7. Vivek Harivyasi 8. Naveen Choudhary	2015-16 2016-17 2017-18	74 (3) of the Companies Act 2013.

Charge No.	Nature Of Charges	Name Of Persons Liable	Year	Relevant Section (Ref.)
		9. Manish Choudhary 10. Mahesh Kumar Tak 11. Megha Chauhan 12. Indu Tak 13. Paras Bolia 14. Shyam Bihari Gupta 15. Ravi Tak 16. Rajeev Verma 17. Sushil Maloo 18. Rajendra Singh Bhandari		
9	Acceptance of deposit by the CUIs in the garb of loans from ACCSL.	1. Laxmi Kripabuildcon Pvt Ltd. 2. Riddhi SiddhiInfraproject Pvt Ltd. 3. Saurabh Tak 4. Mahendra Kumar Tak 6. Vivek Harivyasi 8. Mahesh Kumar Tak 11. Megha Chauhan 12. Indu Tak 13. Paras Bolia 14. Shyam Bihari Gupta	2015-16 2016-17 2017-18	76A of the Companies Act 2013.
10	Falsification of Accounts.	1. Laxmi Kripabuildcon Pvt Ltd. 2. Riddhi Siddhi Infraproject Pvt Ltd. 3. Ridhi Siddhi Infratech Pvt Ltd. 4. Saurabh Tak 5. Mahendra Kumar Tak 6. Mahesh Kumar Tak	2007-08 2008-09 2009-10 2010-11 2011-12 2012-13	628 & 211 of companies act, 1956 r/w 227 punishable u/s 233 of companies act, 1956 (for period till 31st march 2014)

Charge No.	Nature Of Charges	Name Of Persons Liable	Year	Relevant Section (Ref.)
		7. Megha Chauhan 8.Paras Bolia 15. Shyam Bihari Gupta	2013-14 2014-15 2015-16 2016-17	& 448 & 143 punishable u/s 447 & 147 respectively of the companies act, 2013 (for period after 31st march 2014) & 477A of IPC, 1860.
CATEGORY: III - COMPANIES UNDER CONTROL OF VIVEK HARIVYASI (CVH)				
11	Fraud committed by Vivek Harivyasi.	1. Cynosure Real Estates Pvt Ltd 2. EOS Developers Pvt Ltd 3. Adler Infra Ventures Pvt Ltd 4. Headstrong International Exports Pvt Ltd 5. A3G Infra Pvt Ltd 6. Aarti Marketing Private Limited 7. Caranation Trading Private Limited 8. Cyan Financial Solutions Pvt Ltd 9. Lever Finvest Private Limited 10. Rolex Exports Private Limited 11. Dinkar Commercials Pvt Ltd 12. Amarendra Financial Private Limited	2012-13 2013-14 2014-15 2015-16 2016-17	447 of the Companies Act 2013.

Charge No.	Nature Of Charges	Name Of Persons Liable	Year	Relevant Section (Ref.)
		13. Alba Polymers Limited 14. Channel Nine Entertainment Limited 15. Funny Software Limited 16. Gold Line International Finvest Ltd 17. Inceptum Enterprises Limited 18. Kanak Krishi Implements Limited 19.Padmawati Art Creation Pvt Ltd 20. Porsche Capital Market Limited 21. Sagitarius Advertising Limited 22. Satkar Finlease Limited 23. Surya Marketing Limited 24. Vishal Digital Studio Color Lab Pvt Ltd 25. Vivek Harivyasi 26. Peeyush Aggarwal 27. P.V. Sangwan 28. Vijay Jhindal 29. Rajkumar Modi 30. Shinder Pal Singh 31. Gurbir Singh Sandhu		
11	Criminal conspiracy with the object to cheat.	1. Cynosure Real Estates Pvt Ltd 2. EOS Developers Pvt Ltd 3. Adler Infra Ventures Pvt Ltd	2012-13 2013-14 2014-15	120B R/W 418, 420 OF IPC, 1860.

Charge No.	Nature Of Charges	Name Of Persons Liable	Year	Relevant Section (Ref.)
		4. Headstrong International Exports Pvt Ltd 5. A3G Infra Pvt Ltd 6. Aarti Marketing Private Limited 7. Caranation Trading Private Limited 8. Cyan Financial Solutions Pvt Ltd 9. Lever Finvest Private Limited 10. Rolex Exports Private Limited 11. Dinkar Commercials Pvt Ltd 12. Amarendra Financial Private Limited 13. Alba Polymers Limited 14. Channel Nine Entertainment Limited 15. Funny Software Limited 16. Gold Line International Finvest Ltd 17. Inceptum Enterprises Limited 18. Kanak Krishi Implements Limited 19. Padmawati Art Creation Pvt Ltd 20. Porsche Capital Market Limited 21. Sagitarius Advertising Limited 22. Satkar Finlease Limited 23. Surya Marketing	2015-16 2016-17	

Charge No.	Nature Of Charges	Name Of Persons Liable	Year	Relevant Section (Ref.)
		Limited 24. Vishal Digital Studio Color Lab Pvt Ltd 25. Vivek Harivyasi 26. Peeyush Aggarwal 27. P.V. Sangwan 28. Vijay Jhindal 29. Rajkumar Modi 30. Shinder Pal Singh 31. Gurbir Singh Sandhu		
CATEGORY: IV - COMPANIES UNDER CONTROL OF ABHAY K SHAH (CAS)				
12	Auditor rendering prohibited services.	1. Abhay K Shah & Associates 2. Abhay K Shah	2011-12 2012-13 2013-14 2014-15 2015-16 2016-17	144 and 141(3)(e) punishable under 147 of the Companies Act, 2013.
CATEGORY: V – DIRECTOR/EMPLOYEES				
13	Fraud by Rajiv Kumar Rana and Mahesh Dutt Sharma on the CUI.	Rajiv Kumar Rana	2010-11 2011-12 2012-13 2013-14 2014-15	447 of the Companies Act 2013.

Charge No.	Nature Of Charges	Name Of Persons Liable	Year	Relevant Section (Ref.)
			2015-16 2016-17	
14	Fraud by Mahesh Dutt Sharma on the CUI.	Mahesh Dutt Sharma	2014-15 2015-16 2016-17	447 of the Companies Act 2013.

It is submitted that as per **section 212 (15) of the Companies Act, 2013**, the aforesaid investigation report filed with the Special Court for framing of charges shall be deemed to be a report filed by a police officer u/s 173 of Code of Criminal Procedure, 1973 (hereinafter as ‘**Cr.P.C**’). Hence, the complainant relies upon all the documents & statements mentioned in the investigation report and for the sake of convenience and to avoid any confusion the said documents **shall be referred to with the Annexure number affixed to the same in the investigation report.**

That the MCA, in exercise of its powers u/s 212 (14) of the Act of 2013 and u/s 50 of the LLP Act 2008, vide its letter no. **F.No. Legal-35/14/2019 dated 16.05.2019**, has issued necessary directions to the office of the Complainant to file and initiate prosecution against the accused persons named herein above for the offences mentioned herein the said order. **Annexure -C8**

That, the instant complaint is being filed on basis of the Investigation Report dated 09.05.2019 & MCA’s order dated 16.05.2019. The facts which warranted the prosecution under the offence mentioned in the complaint are discussed in detail in the investigation report and the complainant craves leave of this Hon’ble Court to refer and rely upon the contents of the investigation report pertaining to the violations of the respective provisions and they be read as part and parcel of the instant complaint and the same are being referred to here only in brief.

CATEGORIZATION & DESCRIPTION OF THE ACCUSED

It is submitted that the investigation into the affairs of the CUIs (145) have been conducted by categorizing them as per their control and ownership in **categories 1 to 4** and further in **category 5 in which** two director/Employees have been categorized on the basis of their designation as Employee/Director in the CUIs mentioned in categories 1

to 4:

SL. NO.	CATEGORY	NO s.
1.	Adarsh Group of Companies and LLPs (AGC&L)	126
2.	Riddhi Siddhi Group of Companies (RSGC)	8
3.	Companies under control of Vivek Harivyasi (CVH)	5
4.	Companies under control of Abhay Shah (CAS)	6
5.	Directors/Employees: Rajeev Kumar Rana and Mahesh Dutt Sharma	2

The report as well the complaint has maintained this categorization throughout for the sake of brevity and better understanding.

CATEGORY: I - ADARSH GROUP OF COMPANIES AND LLPs (AGC&L)

AGC&L (CUIs), is a group managed and controlled by **Mukesh Modi (A-113)**, his family members (**A- 114, 117, 120, 122, 123, 124, 126, 132**) and associates (**A-115, 116, 119, 121, 125, 127-129, 131, 133, 134, 142, 143, 146, 147, 148, 154**). The group includes **126 companies & LLPs** as detailed in Chapter-III of the investigation report. AGC&L is Gurugram, Haryana based and is majorly into real estate and NBFC sector. The major source of funding in AGC&L is from **Adarsh Credit Cooperative Society Limited (ACCSL)**. ACCSL started its operations in the year 1999 and was founded by **Mukesh Kumar Modi** as a co-operative society primarily catering to the local masses in Rajasthan. In February 2008, it got registered, by conversion, as a Multi-State Co-operative Society with Ministry of Agriculture, Government of India. It has 800+ branches, 20 Lakh members, 3.7 lakh advisors and **Rs. 9,253 Crores of deposit**. Most of the senior positions in ACCSL are found to be held by either Mukesh Kumar Modi or his family members and other associates as recommended by Mukesh Kumar Modi and as a result ACCSL was found to be in the full control of Mukesh Kumar Modi and his family members. Mukesh Modi is the founder and Rahul Modi (**A-114**), his nephew is the MD & CEO of ACCSL.

Investigation revealed that the CUIs (**A -1 to 70**) were incorporated/controlled by Mukesh Modi, his family & associates and, fraudulently secured loans from ACCSL and for this purpose they entered into conspiracy with other accused persons. Further, for the said purpose, taken advantage of his and his family & associate’s control of

ACCSL/CUIs, used an abusive process which lacked any due diligence and which was also in violation of provisions of the Multi State Cooperative Society Act, 2002, which forbids a company to become a member of a Society. The loan sanction was a self-serving exercise and through this process loans of more than Rs 1700 crore were availed by the said CUIs (FY. 2010-11 till FY 2017-18) as principal which, as on 31.03.2018 alongwith accumulated interest is outstanding at Rs.4120 crore.

Investigation revealed that the Directors and Authorised Signatories (A-113, 114, 115, 119, 120, 123, 125, 128, 129,134, 147, 164), of 30 CUIs (A-1, 2, 7, 8, 16, 17, 19, 21, 23, 27-30, 34, 35, 37, 39-43, 45-49,52,55-57) had siphoned of funds of Rs.89.23 Crore in the form of cash withdrawals and shown as cash in hand in the books of accounts. This siphoning was given a lawful color by the controllers/accused persons of CUIs in connivance with ACCSL and Jainam Rathod (A-130), a bogus bill provider, by way of circular transactions involving payment of Share Application Money, bogus purchase of suits (cloth) and parallel forgery of physical and electronic documents. The entire transaction involved is at of Rs. 223.775 Crore which included 30 CUIs and 22 firms, all belonging to Adarsh Group.

Investigation revealed that huge loans and advances as principal amount was due to the CUIs, out of which loans and advances to the tune of Rs.210 Crore have been analyzed in detail. These loans and advances were majorly given without any agreements for purchase of lands or for development agreements. However, in most of the cases neither land was purchased in the name of CUIs nor the funds were returned to them. It has been revealed that wrongful loss was caused to the CUIs and it resulted in wrongful gains to the Directors of CUIs and the third parties.

Investigation revealed that 8 CUIs and 8 Firms of the Adarsh Group were involved through a tripartite agreement with the landowners for purchase of land in Noida. The investigation revealed that siphoning of funds to the tune of Rs. 80 Crore (approx) had happened through this deal and the funds of ACCSL were utilized fraudulently to repay its own loans to 8 CUIs through Firms.

Investigation revealed that ACCSL was investing directly in Adarsh Cooperative Bank (ACB) which was barred by RBI in FY 2012-13. After the ban, funds of Rs.50.40 crore were indirectly transferred through some of the CUIs by ACCSL to ACB. Thus, the interest-bearing funds of ACCSL were given to ACB without any interest, through these identified CUIs.

CATEGORY II- RIDDHI SIDDHI GROUP OF COMPANIES (RSGC)

RSGC, is a group managed and controlled by Mahender Tak (**A-155**), his family (**A-163,164,166,172**) and associates (**A-113, 114, 115, 117,119, 121, 128,167-171,173**). The group includes 8 companies as detailed in Chapter-III of the report.

Investigation revealed that the accused above entered into conspiracy, abused their position and secured loans fraudulently from ACCSL for 3 CUIs (**A 86-88**) of RSGC Group (FY 2007-08 till FY 2017-18). The said grant of loan lacked any due diligence since the CUIs were being controlled by Mahendra Tak (**A-155**) & Family in connivance with Mukesh Modi & his family/associates, who were controlling ACCSL & AGC&L. Further the said amount was misappropriated by the accused persons. The loan sanction was a self-serving exercise and through this process loans to the tune of Rs 152.62 crore were availed by the CUIs as principal which as on 31.03.2018 is outstanding at Rs.883 crore. The loans received by the CUIs were also found to be in violation of the provisions relating to collection of deposits as per relevant provisions of Companies Act 1956 and 2013. Therefore, the amount collected as deposits in ACCSL was being parked in these CUIs along with AGC&L for personal benefit of the Mukesh Modi (**A-113**), Mahender Tak and their families/Associates.

CATEGORY III- COMPANIES CONTROLLED BY VIVEK HARIVYASI (CVH)

Vivek Harivyasi (**A-115**) was Key Managerial Person (KMP) of **AGC&L and RSGC** from the year 2008 to 2015 and was managing their real estate business sector. Based on the facts revealed during the investigation, the 5 companies viz. Cynosure Real Estates Private Limited (**A-90**), EOS Developers Private Limited (**A-91**), Headstrong International Exports Private Limited (**A-93**), Adler Infra Ventures Private Limited (**A-92**) and A3G Infra Private Limited (**A-79**), which were owned/controlled by him and were not part of AGC&L and RSGC, were also brought under investigation.

Investigation revealed that Vivek Harivyasi, being a KMP in AGC&L and RSGC, misappropriated the funds siphoned from AGC&L and RSGC and set up his own network of companies as mentioned above. He misappropriated the funds to purchase Riyasat Green Farm, Chattarpur in the name Cynosure Realestates Private Limited. In the process he was helped by Peeyush Aggarwal (**A-173**), Vijay Jhindal (**A-175**), Rajkumar Modi (**A-176**), and Paramvir Singh Sangwan (**A-174**), to launder and invest cash to the tune of Rs.17 Crore. He along with Peeyush Aggarwal held the shares of the company as benami in the name of Garima Sharma.

Investigation further revealed that Vivek Harivyasi as

Director/Authorised Signatory of Sun Dreambuild Private Limited (**A-48/CUI of Adarsh group**), transferred Rs.12.75 Crore to A3G Infra Private Limited (**A-79**) as advance for land without any agreement. Neither the land in A3G Infra Private Limited (**A-79**) was given to CUI nor the advanced fund was returned. Vivek Harivvysi was controlling A3G Infra Private Limited along with Deepak Shrimali in connivance with A3G's other Shareholder-Directors, Shinder Pal Singh (**A-137**) and Gurbir Singh Sandhu (**A-138**). He also infused unaccounted money into A3G by routing through shell companies belonging to Peeyush Aggarwal.

CATEGORY IV- COMPANIES CONTROLLED BY ABHAY SHAH (CAS)

Abhay K Shah (**A-127**), Statutory Auditor of AGC&L, controls one LLP and five Companies through his family members and associates and was taking money from AGC&L for providing consultancy, accounting, book keeping, management and advisory services, and as advance in the companies owned/controlled by him or his family/associates. It has been revealed that the said amount has been received by him to abet the fraudulent affairs of the AGC&L by not showing their true & fair picture in the financials audited by him. The total amount of money taken by him through his Companies & LLPs as consultancy fee and loan & advances was Rs.48.50 Lakh from FY 2013-14 to 2016-17 and Rs.50 Lakh in FY 2013-14 respectively. He had also taken Rs.4.6 Crore in FY 2016-17 and FY 2017-18 from ABL Projects in his companies as loans through the companies controlled by Rajiv Kumar Rana, Partner in ABL Projects. The ultimate source of this money was ABL Projects, subsidiary of **Adarsh Buildestate Limited, CUI (A-1)**.

CATEGORY: V – DIRECTOR/EMPLOYEES

Rajiv Kumar Rana (**A-177**), Partner in ABL Projects, subsidiary of **Adarsh Buildestate Limited (A-1/CUI of AGC&L)** and Mahesh Dutt Sharma (**A-178**), GM sales of Dehradun and Jammu Projects of Adarsh Buildestate Limited (ABL) and Riddhi Siddhi Infra projects Private Limited (**RSIPL**) (**A-87**) were brought under the fold of investigation due to gravity of their roles in the functioning of, and transactions with, some of the CUIs.

Rajiv Kumar Rana, Partner-Authorised Signatory of ABL Projects, a firm in which major shareholding of Adarsh Buildestate Limited, **siphoned off Rs.78.74 Crore from the books of accounts of ABL Projects for his personal benefits**. Further, he also siphoned off Rs. 5.81 Crore in the name of Meeruth Project from Adarsh Buildestate Limited.

Mahesh Dutt Sharma in abuse of his position as sales and marketing

head of Adarsh Buildestate Limited, Jammu Project **siphoned off Rs.83.55 lakh from ABL and Rs.30 lakh from RSIPL (Total- Rs.1.13 Crore)** as commission and brokerage in his name and in the name of Realty Soul, his proprietorship firm, **causing wrongful loss to the ABL and RSIPL (CUIs).**

LARGER CRIMINAL CONSPIRACY TO SIPHON OF THE FUNDS FROM ACCSL

Investigation has revealed that Mukesh Modi & his family members/Associates, who were controller/managing the affairs of the ACCSL, entered into criminal conspiracy with other accused persons to siphon off, misappropriate the funds from the society through the accused CUIs for their personal use. It is submitted that the examination of the material collected by the investigation team clearly shows that the Mukesh Modi & family/Associates were in direct/indirect control of the affairs of the accused corporate entities and the degree of their control is such that they are the 'directing mind and will' of these accused corporate entities and were controlling their affairs in connivance with other accused persons.

DESCRIPTION OF CHARGES

The facts and violation of law thereof as revealed during investigation constituting the offences are stated in brief as under according to the categorization of the companies as stated above: -

CATEGORY: I - ADARSH GROUP OF COMPANIES AND LLPs (AGC&L)

- OFFENCES UNDER SECTION 447 OF THE COMPANIES ACT, 2013 R/W SECTION 120B R/W 406, 417, 418, 420, 467, 468, 471, 474 OF IPC, 1860

Investigation revealed that the accused persons viz. Mukesh Modi (A-113), Priyanka Modi (A-117), Jinendra Vyas (A-118), Vivek Harivyasi (A-115), Neha Gemawat (A-124), Rohit Modi (A-123), Vaibhav Lodha (A-120), Bharatdas Vaishnav (A-142), Rajeshwar Singh (A-152), Vinay Kumpawat (A-119), Vivek Purohit (A-134), Paras Bolia (A-121), Virendra Modi (A-122), Nitin Rathor (A-116) and Bharat Modi (A-126), abused their position in the CUIs and/or ACCSL to misappropriate funds of ACCSL at various times, starting from FY 2010-11 till FY 2017-18 to the tune of more than Rs. 1700 crore. The amount was fraudulently, with dishonest intention, obtained as loans by the above-mentioned persons in 70 CUIs, and a total amount of Rs. 4120 crore was the outstanding balance against the loans as on 31.03.2018. They used the corporate

identities of the CUIs in order to perpetuate the cheating upon the public at large. In the above manner, they caused wrongful gain to CUIs and ultimately to themselves and corresponding wrongful loss to ACCSL and, therefore, the depositors of ACCSL who had entrusted their money to Mukesh Modi as the controller and Priyanka Modi (FY 2010-11 to FY 2013-14) and Rahul Modi (FY 2014-15 till date) as the Managing Directors of ACCSL. The Statutory Auditor, Abhay K Shah (**A-127**) of Abhay K Shah & Associates, also connived with the above accused persons after being appointed as the auditor for the CUIs in FY 2011-12. He continued to function as a Statutory Auditor till FY 2016-17.

Investigation revealed that Vivek Harivyasi, Deepak Shrimali (**A-129**), Vinay Kumpawat, Manish Chaudhary (**A-128**) and Rohit Modi (**A-123**) regularly withdrew cash from the 30 CUIs from FY 2010-11 to FY 2015-16 which accumulated as cash in hand in their books of accounts. This cash was siphoned off by them causing wrongful loss to the 30 CUIs and wrongful gain to themselves. After the announcement of demonetization, Mukesh Modi, Rohit Modi, Vaibhav Lodha (**A-120**), Neha Gemawat (**A-124**), Bharat Modi (**A-126**), Vivek Purohit (**A-134**) and Rajeshwar Singh (**A-125**) as Directors of 30 CUIs signed and executed false "Cash Pay-In Slips" and "Share Application Forms" of ACCSL in connivance with Rahul Modi, MD, ACCSL showing that the cash in hand which was actually siphoned was deposited in ACCSL. In respect of these false documents corresponding false electronic entries were executed by the accountant Nilesh Jain of the 30 CUIs at the behest of the above-mentioned Directors of the CUIs. Further, Rahul Modi (**A-114**) in connivance with Jainam Rathod (**A-130**) arranged fake invoices, Contract PWs and lorry Receipts which were utilized as genuine by Rahul Modi, and are still in his possession and power, to show the use of Rs. 89.23 Crore in purchase of suits (cloth). Being MD of ACCSL, Rahul Modi directed the employees of ACCSL viz. Damyanti Bhandari (**A-179**), Ram Lal Arya (**A-158**) and Bansi Lal Ahari to carry out false electronic entries in OMNI Bhiwani and SAP systems in which the books of accounts of ACCSL are maintained. Further, a circular transaction was carried out after the CUIs purportedly paid Share Application Money in cash to ACCSL. After a gap of some period ACCSL refunded the same amount to the CUIs through RTGS. The CUIs, on the same day, transferred the amount via RTGS to ACCSL as repayment of principle loan/interest.

The Statutory Auditor, Abhay K Shah (**A-127**), also connived with the other accused persons after joining the CUIs in FY 2011-12 and he continued to function as a Statutory Auditor till FY 2016-17. He has given unqualified audit reports and also helped the accused entities to conceal the wrongdoings from the statutory authorities. This act caused wrongful loss to the ACCSL and its depositors and the CUIs whereby the accused

mentioned above gained wrongfully.

Investigation revealed that ingenuine loans and advances were given to third parties in abuse of their position by the Authorised Signatories/Directors of the CUIs viz. Vivek Harivyasi, Deepak Shrimali, Vinay Kumpawat and Manish Chaudhary of the CUIs from FY 2010-11 to FY 2014-15 in connivance with the companies which received them viz. Sidhartha Ahar Vihar Udyan Private Limited (A-71), CSN Estates Private Limited (A-72), Rosemary Buildcon Private Limited (A-74), Sidhartha Buildtech Private Limited (A-75), NA Developers Private Limited (A-76), Ish Kripa Properties Private Limited (A-77), Sidhartha Buildhome Private Limited (A-78), A3G Infra Private Limited (A-79), Prince Realbuild Private Limited (A-80), HNS Infratech Private Limited (A-81), HNS Projects Private Limited (A-82), Sears Built Private Limited (A-83) and Indian Fibers Limited, and the individuals which were involved viz. Siddhartha Chauhan (A-135), Akshat Singh (A-136), Shindar Pal Singh (A-137), Gurbir Singh Sandhu (A-138), Naveen Kumar (A-139), Surender Singh (A-140) and Aditya Sarda (A-141) cheating the CUIs knowingly and causing wrongful loss to them and dishonestly derived undue advantage to themselves and the third parties.

Investigation further revealed that Mukesh Modi, Meenakshi Modi, Priyanka Modi, Rahul Modi, Ishwar Singh Sindal (A-131), Prakash Chandra Purohit (A-133) Directors/Authorised Signatory of eight (8) EUIs of AGC&L took loan of Rs.25.22 Crore from ACCSL and advances was given for purchase of land in Noida by them of Rs.22.05 Crore. Subsequently, eight (8) Firms of Adarsh Group viz. Adarsh Green Farming Corporation, Entice Land Mark Constructions, Aryarth Agro Corporations, Ansh Dream Land Enterprises, Ellice Buildtech Enterprises, Aryarth Kisan Agro Producers, Aryarth Agrichem Enterprises and Adarsh Organic Food Producers were registered and their partners Vinay Kumpawat, Vaibhav Lodha, Vivek Purohit and Rajeshwar Singh, in connivance with the Directors/Authorised Signatories of the eight (8) CUIs executed Tripartite agreements among the 8 CUIs, 8 Firms and Noida Land owners. Loans were taken in these 8 Firms from ACCSL again and a part of which were utilized to repay the debt of 8 CUIs towards ACCSL. Thus, the repayment of loan of the ACCSL by the CUIs was done by the money taken from ACCSL itself to it through the Firms. Further, abusing their position the accused siphoned off cash to the tune of Rs. 80.93 Crore from the firms through cash withdrawals which was adjusted in books of accounts of CUIs as repayment of loan after a circular transaction involving fake Share Application Money with ACCSL during demonetization in FY 2016-17. Thus, the accused are liable for prosecution under Section 447 of the Companies Act 2013. In view of the above facts, the accused persons and entities are liable for prosecution and punishment under section 447 of Companies Act, 2013

and under other offences as mentioned in the investigation report.

- SECTION 58A OF THE COMPANIES ACT 1956:
ACCEPTANCE OF DEPOSIT BY THE CUIs IN THE GARB
OF LOANS FROM ACCSL

Investigation revealed that the loans of Rs.1437.32 Crore received by the **54 CUIs** from ACCSL before 31st March 2014 falls under the category of '**deposits**' as per Section 58 A of the Companies Act, 1956 r/w Companies (Acceptance of Deposit) Rules, 1975. Accordingly, the 54 CUIs and their Directors, as mentioned in the investigation report, for the corresponding period i.e till 31st March 2014 are liable to be punished under Section **58A (5)(a) and 58A (5)(a)(b) of the Companies Act 1956 respectively.**

- SECTION 74 (3) OF THE COMPANIES ACT 2013:
ACCEPTANCE OF DEPOSIT BY THE CUIs IN THE GARB
OF LOANS FROM ACCSL

Investigation revealed that the loans along with accrued interest received by 54 CUIs from ACCSL uptill 31st March 2014 and not repaid before 31st March 2014 of Rs. 1437.32 crore fall under the category of deposits that should have been repaid as per provisions of section 74(1) of the Companies Act 2013 r/w Companies (Acceptance of Deposit) Rules, 2013. The 54 CUIs and their Directors, for the corresponding period after 31st March 2014, for which they have not repaid the amount in contravention of the provisions of the said section are liable to be punished under Section 74(3) of the Companies Act 2013.

- SECTION 76A OF THE COMPANIES ACT 2013:
ACCEPTANCE OF DEPOSIT BY THE CUIs IN THE GARB
OF LOANS FROM ACCSL

Investigation revealed that the principal amount of loan received by 48 CUIs from ACCSL after 31st March 2014 of Rs. 270.11 Crore falls under the definition of Deposits as per Section 73 of the Companies Act 2013 r/w Companies (Acceptance of Deposit) Rules, 2013 and have been received in contravention of the provisions of the said section/rules. The 48 CUIs and their Directors are, therefore, liable to be punished under Section 76A of the Companies Act 2013 from the date of commencement of the said section.

- VIOLATION OF SECTIONS 628 & 211 OF COMPANIES ACT, 1956 READ WITH SECTION 227 PUNISHABLE U/S 233 OF COMPANIES ACT, 1956 FOR PERIOD TILL 31ST MARCH 2014 AND VIOLATION OF SECTION 448 & 143

PUNISHABLE U/S 447 & 147 RESPECTIVELY OF THE COMPANIES ACT, 2013 FOR PERIOD AFTER 31ST MARCH 2014, R/W SECTION 477A OF IPC, 1860.

Investigation revealed that; the loans taken from ACCSL have been falsely/wrongly shown as loans taken from a Financial Institution instead of deposits from ACCSL in the Financial statements of the 54 CUIs which had received loan till 31st March 2014. Further, the interest charged on the loans have been shown as bank interest/bank charges in their financial statements.

Further, 30 CUIs had shown the cash siphoned by the Directors/Authorised Signatories from their books as cash in hand in the financial statements from FY 2010-11 to FY 2016-17. Further, 30 CUIs have shown repayment of loan made to ACCSL to the tune of Rs. 89.23 Crore in their financial statements.

Further, the CUIs involved in the siphoning through loans and advances, have shown the unrecoverable advances in their financial statements as recoverable since the advances were given till the filing of last financials statements i.e FY 2016-17 with the ROC till the order of investigation dated 20.06.2018. Further, the CUIs have capitalized interest on the advances given which is not as per the Accounting Standard-16.

All of the above have resulted in misstatements, non-depiction of true and fair view of financial statements and have resulted in materially false financial statements of the CUIs from FY 2010-11 till FY 2016-17 as filed with the respective Registrar of Companies. Thus, the CUIs and signatories of the financial statements, who have signed them knowing it to be false, of the corresponding CUIs for the FY 2010-11 to FY 2013-14 have violated section 628 and 211 of the Companies Act, 1956 and are liable to be prosecuted under the same sections. Further, the CUIs and signatories of the financial statements, who have signed them knowing it to be false, of the corresponding CUIs for the FY 2014-15 to FY 2016-17 have violated section 448 of the Companies Act, 1956 and are liable to be prosecuted under Section 447 of the Companies Act 2013.

It is further submitted that Abhay K Shah & Associates, audit firm was statutory auditor of all the AGC&L CUIs which have been discussed above with Abhay K Shah, Ichchhita Dungarwal and Neha Kataria being the signing partners. They have given unqualified audit reports which do not contain the above-mentioned instances of falsification in the financial statement as filed by the respective CUIs. He has failed to perform his duties as statutory auditor as defined under Section 227 & 229 of the Companies Act 1956 making him liable to be prosecuted under section 233 of the Companies Act 1956 for the period FY 2010-11 to FY 2013-14. Further, for his failure to perform duties as statutory auditor for the period

FY 2014-15 to FY 2016-17 in respect of corresponding CUIs he has violated Section 143 of the Companies Act 2013 and is liable to be prosecuted under Section 147 of the Companies Act 2013.

CATEGORY II - RIDDHI SIDDHI GROUP OF COMPANIES (RSGC)

- OFFENCES UNDER SECTION 447 OF THE COMPANIES ACT, 2013 R/W SECTION 120B R/W 406, 417, 418, 420 OF IPC, 1860

Investigation revealed that the accused persons viz. Saurabh Tak (A-172), Shyam Behari Gupta (A-165), Mahendra Kumar Tak (A-155), Indu Tak (A-164), Vivek Harivyasi (A-115), Mukesh Modi (A-113), Manish Chaudhary (A-128), Vinay Kumar Kumpawat (A-119), Paras Bolia (A-121), Priyanka Modi (A-117) and Rahul Modi (A-114), in connivance with each other and as part of larger conspiracy as was in case of AGC&L, abused their position in the CUIs and/or ACCSL to misappropriate funds of ACCSL at various times, starting from **FY 2007-08 till FY 2017-18** to the tune of more than Rs. 152.62 crore. The amount was fraudulently, with dishonest intention, obtained as loans by the above-mentioned persons in **3 CUIs (A-86-88)**, and a total amount of Rs. 883 crore was the outstanding balance against the loans as on 31.03.2018. This fraud was committed by the CUIs on the ACCSL and its depositors as there was connivance between the controllers of CUIs and that of ACCSL. They used the corporate identities of the CUIs in order to perpetuate the cheating upon the public at large. In the above manner, they caused wrongful gain to CUIs and ultimately to themselves and corresponding wrongful loss to ACCSL and its depositors who had entrusted their money to Mukesh Modi as the controller and Priyanka Modi (FY 2010-11 to FY 2013-14) and Rahul Modi (FY 2014-15 till date) as the Managing Directors of ACCSL. **In this regard it has been further revealed that as part of larger conspiracy, Mukesh Modi, Vivek Harivyasi, Vinay Kumpawat & Manish Chaudhary were appointed as Directors soon after the loans were granted to Riddhi Siddhi Infra Projects Pvt. Ltd by ACCSL.**

Investigation revealed that the RSGC, as part of the larger conspiracy, also secured loan/advances from **Adarsh Builestate Ltd/A-1 (a CUI of AGC&L controlled by Mukesh Modi & Family/Associates)**, which is still outstanding on 31.03.2017. It is submitted that the **abovementioned funds secured from ABL/A-1 by RSGC was out of the loan taken fraudulently by ABL from ACCSL.**

In this regard it is further submitted that, being part of larger conspiracy, Mukesh Kumar Modi, Vivek Harivyasi, Vinay Kumar Kumpawat & Manish Chaudhary, as Directors, were managing the projects being done

by RSGC in Jaipur & Jammu.

Investigation further revealed that the Statutory Auditors, Raj Kumar Bohra (**A-171**) and Sudhir Mehta (**A-170**) of S L Bohra & Associates also connived with the other accused persons since FY 2007-08 till FY 2016-17, he has given unqualified audit reports and also helped the accused to conceal the wrongdoings from the statutory authorities. The CUIs have caused wrongful loss to ACCSL and its depositors to the tune of at least Rs.152.62 Crore which is the principal loan amount taken by 3 CUIs from ACCSL. The accused and entities, on account of the above acts, as per the list given below are liable for prosecution and punishment under section 447 of Companies Act, 2013 and under sections of IPC as mentioned in the report.

- **SECTIONS 58A OF THE COMPANIES ACT 1956:
ACCEPTANCE OF DEPOSIT BY THE CUIs IN THE GARB
OF LOANS FROM ACCSL**

Investigation revealed that the loans of Rs.132.23 Crore received by the 3 CUIs from ACCSL before 31st March 2014 fall under the category of deposits as per Section 58A of the Companies Act, 1956 r/w Companies (Acceptance of Deposit) Rules, 1975. Accordingly, the 3 CUIs and their Directors for the corresponding period i.e till 31st March 2014 are liable to be punished under Section 58A(5)(a) and 58A(5)(a)(b) of the Companies Act 1956 respectively.

- **SECTIONS 76A OF THE COMPANIES ACT 2013:
ACCEPTANCE OF DEPOSIT BY THE CUIs IN THE GARB
OF LOANS FROM ACCSL**

Investigation revealed that the principal amount of loan received by 2 CUIs (**A-86 & A-87**) from ACCSL after 31st March 2014 of Rs. 20.39 Crore falls under the definition of Deposits as per Section 73 of the Companies Act 2013 r/w Companies (Acceptance of Deposit) Rules, 2013 and have been received in contravention of the provisions of the said section. The 44 CUIs and their Directors are, therefore, liable to be punished under Section 76A of the Companies Act 2013 from the date of commencement of the said section.

- **VIOLATION OF SECTIONS 628 & 211 OF COMPANIES ACT, 1956 READ WITH SECTION 227 PUNISHABLE U/S 233 OF COMPANIES ACT, 1956 FOR PERIOD TILL 31ST MARCH 2014 AND VIOLATION OF SECTION 448 & 143 PUNISHABLE U/S 447 & 147 RESPECTIVELY OF THE COMPANIES ACT, 2013 FOR PERIOD AFTER 31ST MARCH 2014, R/W SECTION 477A OF IPC, 1860.**

Investigation revealed that the loans taken from ACCSL have been shown as loans taken from a Financial Institution in the Financial statements of the 3 CUIs which had received loan till 31st March 2014. Further, the interest charged on the loans have been shown as bank interest/bank charges in their financial statements. Further the loan, which is actually deposit, is still outstanding in the books of accounts of the CUIs making it a continuing offence from 2007-08 to FY 2017-18.

The above has resulted in misstatements, non-depiction of True and Fair View of financial statements and have resulted in materially false financial statements of the CUIs from FY 2007-11 till FY 2016-17 as filed with the respective Registrar of Companies. Thus, the CUIs and signatories of the financial statements, who have signed them knowing it to be false, of the corresponding CUIs for the FY 2010-11 to FY 2013-14 have violated section 628 and 211 of the Companies Act, 1956 and are liable to be prosecuted under the same sections. Further, the CUIs and signatories of the financial statements, who have signed them knowing it to be false, of the corresponding CUIs for the FY 2014-15 to FY 2016-17 have violated section 448 of the Companies Act, 1956 and are liable to be prosecuted under Section 447 of the Companies Act 2013.

Sampati Lal Bohra & Company, audit firm was statutory auditor of all the CUIs of RSGC which have been discussed above with Raj Kumar Bohra and Sudhir Mehta being the signing partners. They have given unqualified audit reports which do not contain the above-mentioned instances of falsification in the financial statement as filed by the respective CUIs. He has failed to perform his duties as statutory auditor as defined under Section 227 & 229 of the Companies Act 1956 making him liable to be prosecuted under section 233 of the Companies Act 1956 for the period FY 2007-08 to FY 2013-14. Further, for his failure to perform duties as statutory auditor for the period FY 2014-15 to FY 2016-17 in respect of corresponding CUIs, he has violated Section 143 of the Companies Act 2013 and is liable to be prosecuted under Section 147 of the Companies Act 2013.

CATEGORY III- COMPANIES CONTROLLED BY VIVEK HARIVYASI (CVH)

- SECTION 447 OF THE COMPANIES ACT, 2013: FRAUD COMMITTED BY VIVEK HARIVYASI ON THE CUI

Investigation revealed that Vivek Harivyasi siphoned off money in abuse of his position as Director-Authorised Signatory from AGC&L, and in connivance with Peeyush Aggarwal (**A-173**) and Paramvir Singh Sangwan (**A-174**) who invested Rs. 17 Crore out of the siphoned off money to aquire Riyasat Green farms in the name of Cynosure Real Estates Private Limited thereby gaining wrongfully from the siphoned off

funds. The shares owned by Vivek Harivyasi and Peeyush Aggarwal were held in the name of Garima Sharma as benami shareholding. The siphoned off cash was laundered with the connivance of Peeyush Aggarwal, Vijay Jhindal (**A-175**) and Rajkumar Modi (**A-176**), and their 20 shell companies. Thus, the accused are liable to be prosecuted under Section 447 of the Companies Act 2013.

Further, Vivek Harivyasi as Director-Authorised Signatory of Sun Dreambuild Private Limited (CUI), siphoned off Rs.12.75 Crore from it by transferring the money to A3G Infra Private Limited in connivance with Shinder Pal Singh (**A-137**) and Gurbir Singh Sandhu (**A-138**), the other shareholder-Directors of A3G Infra Private Limited. This company was controlled and owned by Vivek Harivyasi, as he had a shareholding of 60% in 2012-13 and 10% in 2013-14. He was also Director in the company till FY 2016-17. Vivek Harivyasi in connivance with Peeyush Aggarwal, also infused cash siphoned off from AGC&L during his tenure as shareholder-director, into A3G Infra Private Limited. This was done by laundering the cash through the companies owned and controlled by Peeyush Aggarwal, which gave accommodation entries shown as loan. Thus, Vivek Harivyasi along with Shinder Pal Singh and Gurbir Singh Sandhu cheated Sun Dreambuild Private Limited, injuring its interest, and in the process made wrongful gain from the above transaction to the tune of Rs.12.75 Crore. Thus, the aforesaid accused are liable to be prosecuted under Section 447 of the Companies Act, 2013 r/w section 120B r/w section 420 of IPC.

Peeyush Aggarwal (**A-173**) was the auditor of **CREP** has given unqualified audit reports which do not contain the above-mentioned instances of fraud in the financial statement as filed by the said CUI. For his failure to perform duties as statutory auditor for the respective period in respect of said CUI, he has violated Section 143 of the Companies Act 2013 and is liable to be prosecuted under Section 147 of the Companies Act 2013.

CATEGORY IV- COMPANIES CONTROLLED BY ABHAY SHAH (CAS)

- VIOLATION OF SECTION 144 AND 141(3)(e) PUNISHABLE UNDER 147 OF THE COMPANIES ACT 2013

Investigation revealed that Abhay K Shah, Statutory Auditor of the CUIs (AGC&L), provided consultancy services and received Rs.48.50 Lakh in his companies for the same from the CUIs which is in violation to section 144 of the Companies Act 2013. Further, he was also indebted to the CUIs as he had taken loans in his companies to the tune of Rs.50 lakh directly and Rs.4.6 Crore through ABL Projects which is in violation of

section 141 (3) (e) of the Companies Act 2013. Thus, Abhay K Shah, is liable for prosecution for the offences covered under Section 147 of the Companies Act 2013.

CATEGORY V – Director/Employees

- **SECTION 447 OF THE COMPANIES ACT, 2013: FRAUD BY RAJIV KUMAR RANA ON THE CUI**

Investigation revealed that Rajiv Kumar Rana (**A-177**) siphoned off Rs.78.74 Crore from ABL Projects, subsidiary of Adarsh Buildestate Limited (CUI-AGC&L)/A-1, through abuse of his position as Authorised Signatory of ABL Projects and wrongfully gained to that extent. Further, he siphoned off Rs.5.81 Crore from Adarsh Buildestate Limited in the name of advance given for Meerut project. Thus, Rajiv Kumar Rana, caused wrongful loss to Adarsh Buildestate Limited of Rs. 84.50 Crore making him liable for prosecution under section 447 of the Companies Act 2013.

- **SECTION 447 OF THE COMPANIES ACT, 2013: FRAUD BY MAHESH DUTT SHARMA ON THE CUIs**

Investigation revealed that , Mahesh Dutt Sharma (**A-178**) in abuse of his position as sales and marketing head of Adarsh Buildestate Limited, Jammu Project (CUI) siphoned off Rs.83.55 lakh from ABL and Rs.30 lakh from RSIPL (Total- Rs.1.13 Crore) as commission and brokerage in his name and in the name of Realty Soul causing wrongful loss to the ABL and RSIPL (CUIs) making him liable for prosecution under section 447 of the Companies Act 2013.

That it is submitted that the accused persons herein above are charged with/complained of various offences which are punishable with more than 3 years of imprisonment and therefore the present complaint is well within the period of limitation as prescribed U/s 468 of Cr.P.C, 1973.

That the complainant further submits that the list of documents and the witnesses have been annexed with the Complaint also, however, the complainant craves the liberty of Hon'ble Court to refer and rely upon additional list of documents and witnesses as necessary, during the course of trial.”

3. Before proceeding further it will be relevant to mention that as required under the provisions of Section 212 of the Companies Act

after completing the investigations a report was submitted by the Complainant SFIO to the Central Government and vide order No. F.No.Legal-35/14/2019 dated 16.05.2019, the Central Government after considering the investigation report as per the powers conferred under Section 212(1)(c) of the Companies Act, granted necessary permission to initiate criminal prosecution against the accused persons as required under Section 212(14) of the Companies Act. Besides, this the Central Government has also authorised Shri Prashant Baliyan, Deputy Director to file the complaint before this Court on behalf of the Complainant SFIO as per the order bearing No.SFIO/PROS/0010/2019/I/16869/2019 dated 16.05.2019.

4. Needless to say initially as per the office order No.07/115/2018/CL-II (NWR) dated 20.06.2018, the Central Government being empowered under Section 212(c) of the Companies Act, 2013 ordered the investigations into the affairs of the all the companies who are now alleged to be the accused before this Court and also authorized the officers of the Serious Fraud Investigation Office to investigate the same as per the nominations made by the Director, SFIO and that permission was granted to investigate into the following areas:-

- “(i) To ascertain and unearth rotation of funds or identification of quantum of diversion of funds or siphoning including beneficiaries thereof;
- (ii) To identify instances of mismanagement, negligence or fraud;
- (iii) To ascertain the role of auditors, KMPs or independent

directors or any other person in the alleged fraud;

(iv) To examine role of any other entity used as conduit in the alleged fraud; and

(v) To identify non-compliance of the statutory provisions of the Act and its impact on Corporate Governance.

5. That the Inspector(s) so appointed shall exercise all powers available to them under Section 217 of the Companies Act, 2013 and Chapter IX of LLP Act, 2008. The inspector(s) shall complete their investigation and submit their report to the Central Government within a period of 03 (Three) months from the date of issue of this order.”

6. Thereafter as per the order bearing No. SFIO/Inv./AOI/2018-19 dated 20.06.2018, Shri Prashant Baliyan, Deputy Director was appointed as the Investigating Officer to carry out the investigations granting him powers of inspector as per the provisions of Section 217 of the Companies Act. Thereafter vide order dated 28.11.2018 bearing No.SFIO/Inv./AOI/2017-18 dated 28.11.2018 apart from Shri Prashant Baliyan some more persons were appointed as inspectors to carry out the investigations. Later vide order No.7/115/2018/CL-II (NWR) dated 25.02.2019, the Central Government further granted approval for the investigations as required under Section 219 of the Companies Act into the affairs of certain more companies in connection with the investigations of the Adarsh Group of Companies.

7. Needless to say as per the provisions of Section 212(15) , the

investigation report filed with this Court as Special Court along with the complaint shall be deemed to be a report filed by the police officer under Section 173 of the Code of Criminal Procedure, 1973 and then it is a fact that as per the notification No. S.O. 2843 (E) dated 1st September, 2016 issued by the Ministry of Corporate Affairs, Government of India as conveyed by the Hon'ble High Court through letter No.1067 Spl. Gaz.II (2-G) dated 19.10.2016, the undersigned along with 2nd Additional Sessions Judge at Gurugram has been designated as Special Courts for the State of Haryana under the Companies Act, to try the offences punishable under the Companies Act of imprisonment with 2 years or more

8. And lastly, Section 436(1) of the Companies Act says that the Special Court upon perusal of the police report of the facts constituting an offence under this Act or upon a complaint in that behalf take cognizance of the offence that the accused company committed put for trial. Similarly, section 436(2) says while trying the offence under the Companies Act the Special Court may also try an offence other than an offence under the Companies Act which the accused may under the Code of Criminal Procedure be charged at the same trial. Lastly, it is also a fact that as required under Section 439(2) of the Companies Act, the present complaint along with the investigation report has been filed.

9. Accordingly after considering the contentions of counsel for Complainant SFIO as well as the Investigating Report of the complainant

and after going through the allegations as detailed in the complaint vis-a-vis the evidence collected during the investigations carried out by the Complainant SFIO, it comes out that the detailed investigations has been carried out by the Complainant SFIO by recording the statements of the various persons involved or not involved as per the provisions of Companies Act as detailed from page No. 27657 to page No. 62390 of the investigation report. Besides this, voluminous documents were collected some of which are annexed with the complaint as **Annexure-A1 to Annexure-A8**, whereas the other documents are part of the investigation report starting from page No. 15889 to page No. 27656 giving details of the documentary evidence collected during the investigations and from this entire evidence, it is prima facie established that there is sufficient prima facie evidence at this stage, which shows the involvement of all the accused persons in the conspiracy coupled with different crimes alleged against them are supported by each and every minute details of the prima facie evidence against them as duly clarified, coupled with the relevant documents showing its authenticity and veracity and thus it is held that there is sufficient prima facie evidence to take cognizance of the matter and it is ordered as under:

I. that all the companies Adarsh Buildestate Limited (A-1), Aaditya Mega Projects Private Limited (A-2), Adarsh Agro Seeds Private Limited (A-3), Adarsh Crops Private Limited (A-4), Adarsh Green Farming Private Limited (A-5), Adarsh Organic Foods Private Limited (A-6), Adarsh Thoughtworks Private Limited (A-7), Ansh Build Estate Private Limited (A-8), Applique Buildestate Private Limited

(A-9), Arizona Realestate Private Limited (A-10), Aryarth Capital Enterprises Private Limited (A-11), Asha Agro Seeds Private Limited (A-12), Asha Crops and Agriculture Private Limited (A-13), Asha Kisan Agro Private Limited (A-14), Bathing Sun Realty Private Limited (A-15), Best Buildcreations Private Limited (A-16), Big Blue Developers Private Limited (A-17), Blue Water Realty Private Limited (A-18), Bondi Builders & Developers Private Limited (A-19), Bramha Infracon Private Limited (A-20), Chevron Buildcon Private Limited (A-21), Daisy Infratech Private Limited (A-22), Deniz Builders & Developers Private Limited (A-23), Divya Buildcreations Private Limited (A-24), Divyahome Projects Private Limited (A-25), Earth Buildcreation Private Limited (A-26), Entice Realtech Private Limited (A-27), Eshwar Buildtech Private Limited (A-28), Gajanan Infrabuild Private Limited (A-29), Govindam Buildstates Private Limited (A-30), Maisonette Infraestates Private Limited (A-31), Marven Buildcon Private Limited (A-32), Marven Greenhomes Private Limited (A-33), Mascot Infrabuild Private Limited (A-34), Nirwana Buildcon Private Limited (A-35), Pan Infratech Private Limited (A-36), Park Dublin Builders Private Limited (A-37), Parthsarathi Megamalls Private Limited (A-38), Pine Infracon Private Limited (A-39), Prime Time Infraprojects Private Limited (A-40), Raghuvanshi Realestates Private Limited (A-41), Redkey Buildcon Private Limited (A-42), Reed Promoters & Developers Private Ltd. (A-43), Sambhav Township Private Limited (A-44), Shack Infrastructure Private Limited (A-45), Shourya Buildstates Private Limited (A-46), Star Buildstates Private Limited (A-47), Sun Dream build Private Limited (A-48), Tectonic Infrastructure Private Limited (A-49), Valerian Buildtech Private Limited (A-50), Vasudev Infra Buildcon Private Limited (A-51), Vasudha Realcon Private Limited (A-52), Victory Buildstates Private Limited (A-53), Vishavam Infrabuild Private Limited (A-54), Vista Dream Homes Private Limited (A-55), Vrindavan Dreamestates Private Limited (A-56), Waterfall Real Estates Private Limited (A-57), Glorious Realhome Private Limited (A-58), Mother Land Buildhomes Private Limited (A-59), Gharonda Buildstates Private Limited (A-60), Ghanta Karn

Buildestates & Land Developers Pvt Ltd. (A-61), Sambhav Energy Limited (A-62), Dwell Buildestates Private Limited (A-63), Adarsh Tech Innovision Private Limited (A-64), Fracton Technologies Private Limited (A-65), Vaayu Build Tech Private Limited (A-66), Shree Veerji Battery Private Limited (A-67), Virendra Modi Buildestate Pvt Ltd (A-68), Aryarth Agrichem Private Limited (A-69), Adarsh Producers Limited (A-70), Sidhartha Ahar Vihar Udyan Private Limited (A-71), CSN Estates Private Limited (A-72), Palm Tree Buildcon Pvt Ltd (A-73), Rosemary Buildcon Private Limited (A-74), Sidhartha Buildtech Private Limited (A-75), NA Developers Private Limited (A-76), Ish Kripa Properties Private Limited (A-77), Sidhartha Buildhome Private Limited (A-78), A3G Infra Private Limited (A-79), Prince Realbuild Private Limited (A-80), HNS Infratech Private Limited (A-81), HNS Projects Private Limited (A-82), Sears Built Private Limited (A-83), Abhay K Shah & Associates (A-84), Axtron Tex Chem (I) Pvt Ltd. (A-85) including one auditor firm through its Directors and authorized employees, Laxmikripa Buildcon Pvt Ltd (A-86), Riddhi Siddhi Infraprojects Pvt Ltd (A-87), Riddhi Siddhi Infratech Pvt Ltd (A-88), S L Bohra & Associates (A-89), Cynosure Real Estates Pvt Ltd (A-90), EOS Developers Pvt Ltd (A-91), Adler Infra Ventures Pvt Ltd (A-92), Headstrong International Exports Pvt Ltd (A-93), Aarti Marketing Private Limited (A-94), Caranation Trading Private Limited (A-95), Cyan Financial Solutions Pvt Ltd (A-96), Lever Finvest Private Limited (A-97), Rolex Exports Private Limited (A-98), Dinkar Commercials Pvt Ltd (A-99), Amarendra Financial Private Limited (A-100), Alba Polymers Limited (A-101), Channel Nine Entertainment Limited (A-102), Funny Software Limited (A-103), Gold Line International Finvest Ltd (A-104), Inceptum Enterprises Limited (A-105), Kanak Krishi Implements Limited (A-106), Padmawati Art Creation Pvt Ltd (A-107), Porsche Capital Market Limited (A-108), Sagitarius Advertising Limited (A-109), Satkar Finlease Limited (A-110), Surya Marketing Limited (A-111), Vishal Digital Studio Color Lab Pvt Ltd (A-112), Mukesh Modi (A-113), Rahul Virendra Modi (A-114), are liable to be prosecuted for commission of an offence as punishable under Sections 120B IPC, 447 of the Companies

Act, 2013, 417, 418, 420 read with Section 120B of the IPC;

II. And that accused Adarsh Buildestate Limited (A-1), Aaditya Mega Projects Private Limited (A-2), Adarsh Agro Seeds Private Limited (A-3), Adarsh Crops Private Limited (A-4), Adarsh Green Farming Private Limited (A-5), Adarsh Organic Foods Private Limited (A-6), Adarsh Thoughtworks Private Limited (A-7), Ansh Build Estate Private Limited (A-8), Applique Buildestate Private Limited (A-9), Arizona Realestate Private Limited (A-10), Aryarth Capital Enterprises Private Limited (A-11), Asha Agro Seeds Private Limited (A-12), Asha Crops and Agriculture Private Limited (A-13), Asha Kisan Agro Private Limited (A-14), Bathing Sun Realty Private Limited (A-15), Best Buildcreations Private Limited (A-16), Big Blue Developers Private Limited (A-17), Blue Water Realty Private Limited (A-18), Bondi Builders & Developers Private Limited (A-19), Bramha Infracon Private Limited (A-20), Chevron Buildcon Private Limited (A-21), Daisy Infratech Private Limited (A-22), Deniz Builders & Developers Private Limited (A-23), Divya Buildcreations Private Limited (A-24), Divyahome Projects Private Limited (A-25), Earth Buildcreation Private Limited (A-26), Entice Realtech Private Limited (A-27), Eshwar Buildtech Private Limited (A-28), Gajanan Infrabuild Private Limited (A-29), Govindam Buildstates Private Limited (A-30), Maisonette Infraestates Private Limited (A-31), Marven Buildcon Private Limited (A-32), Marven Greenhomes Private Limited (A-33), Mascot Infrabuild Private Limited (A-34), Nirwana Buildcon Private Limited (A-35), Pan Infratech Private Limited (A-36), Park Dublin Builders Private Limited (A-37), Parthsarthi Megamalls Private Limited (A-38), Pine Infracon Private Limited (A-39), Prime Time Infraprojects Private Limited (A-40), Raghuvanshi Realestates Private Limited (A-41), Redkey Buildcon Private Limited (A-42), Reed Promoters & Developers Private Ltd. (A-43), Sambhav Township Private Limited (A-44), Shack Infrastructure Private Limited (A-45), Shourya Buildstates Private Limited (A-46), Star Buildstates Private Limited (A-47), Sun Dream build Private Limited (A-48), Tectonic Infrastructure Private Limited (A-49), Valerian Buildtech

Private Limited (A-50), Vasudev Infra Buildcon Private Limited (A-51), Vasudha Realcon Private Limited (A-52), Victory Buildstates Private Limited (A-53), Vishavam Infrabuild Private Limited (A-54), Vista Dream Homes Private Limited (A-55), Vrindavan Dreamestates Private Limited (A-56), Waterfall Real Estates Private Limited (A-57), Glorious Realhome Private Limited (A-58), Mother Land Buildhomes Private Limited (A-59), Gharonda Buildstates Private Limited (A-60), Ghanta Karn Buildstates & Land Developers Pvt Ltd. (A-61), Sambhav Energy Limited (A-62), Dwell Buildstates Private Limited (A-63), Adarsh Tech Innovision Private Limited (A-64), Fracton Technologies Private Limited (A-65), Vaayu Build Tech Private Limited (A-66), Shree Veerji Battery Private Limited (A-67), Virendra Modi Buildestate Pvt Ltd (A-68), Aryarth Agrichem Private Limited (A-69), Adarsh Producers Limited (A-70), Sidhartha Ahar Vihar Udyan Private Limited (A-71), CSN Estates Private Limited (A-72), Palm Tree Buildcon Pvt Ltd (A-73), Rosemary Buildcon Private Limited (A-74), Sidhartha Buildtech Private Limited (A-75), NA Developers Private Limited (A-76), Ish Kripa Properties Private Limited (A-77), Sidhartha Buildhome Private Limited (A-78), A3G Infra Private Limited (A-79), Prince Realbuild Private Limited (A-80), HNS Infratech Private Limited (A-81), HNS Projects Private Limited (A-82), Sears Built Private Limited (A-83), Axtron Tex Chem (I) Pvt Ltd. (A-85), Mukesh Modi (A-113), Rahul Virendra Modi (A-114), Vivek Hariviyasi (A-115), Nitin Rathore (A-116), Priyanka Modi (A-117), Jinendra Vyas (A-118), Vinay Kumpawat (A-119), Vaibhav Lodha (A-120), Paras Bolia (A-121), Virender Modi (A-122), Rohit Modi (A-123), Neha Gemawat (A-124), Rajeshwar Singh (A-125), Bharat Modi (A-126), Abhay K Shah (A-127), Manish Chaudhary (A-128), Deepak Shrimali (A-129), Jainam Rathod (A-130), Ishwar Singh Sindal (A-131), Meenakshi Modi (A-132), Prakash Chandra Purohit (A-133), Vivek Purohit (A-134), Sidharth Chauhan (A-135), Akshat Singh (A-136), Shinder Pal Singh (A-137), Gurbir Singh Sandhu (A-138), Naveen Kumar (A-139), Surender Singh (A-140), Aditya Sarda (A-141) are also liable to be prosecuted for commission of an offence as punishable under

Sections 120B read with Section 417, 418, 420 of IPC;

III. And that the accused Mukesh Modi (A-113), Priyanka Modi (A-117) and Rahul Modi (A-114) are also liable to be prosecuted for commission of an offence as punishable under Section 406 IPC;

IV. And that the accused Mukesh Modi (A-113), Rahul Modi (A-114), Rohit Modi (A-123), Vaibhav Lodha (A-120), Rajeshwar Singh (A-125), Vivek Purohit (A-134), Neha Gemawat (A-124), Jainam Rathod (A-130) are also liable to be prosecuted for commission of an offence as punishable under Sections 467, 468, 471, 474 read with Section 120B IPC;

V. And that the companies Manish Chaudhary (A-128), Deepak Shrimali (A-129), Prakash Chandra Purohit (A-133), Vivek Purohit (A-134), Akshat Singh (A-136), Naveen Kumar (A-139), Bharat Das Vaishnav (A-142), Sudhir Punia (A-143), Joydeep Das Gupta (A-144), Lovekush Sharma (A-145), Leena Hariviyasi (A-146), Vimal Sanwarmal Sharma (A-147), Avanish Kumar Tyagi (A-148), Vijay Shukla (A-149), Ajit Singh Rathore (A-150), Poonam Madan (A-151), Nazima Khan (A-152), Shabbir Khan (A-153), Bharat Kumar Mardia (A-154), Mahendra Kumar Tak (A-155) are also liable to be prosecuted for commission of an offence as punishable under Section 58A of the Companies Act, 1956.

VI. And that the accused Adarsh Buildestate Limited (A-1), Aaditya Mega Projects Private Limited (A-2), Adarsh Thoughtworks Private Limited (A-7), Ansh Build Estate Private Limited (A-8), Applique Buildestate Private Limited (A-9), Arizona Realestate Private Limited (A-10), Aryarth Capital Enterprises Private Limited (A-11), Bathing Sun Realty Private Limited (A-15), Best Buildcreations Private Limited (A-16), Big Blue Developers Private Limited (A-17), Blue Water Realty Private Limited (A-18), Bondi Builders & Developers Private Limited (A-19), Bramha Infracon Private Limited (A-20), Chevron Buildcon Private Limited (A-21), Deniz Builders & Developers Private Limited (A-23), Divya

Buildcreations Private Limited (A-24), Divyahome Projects Private Limited (A-25), Earth Buildcreation Private Limited (A-26), Entice Realtech Private Limited (A-27), Eshwar Buildtech Private Limited (A-28), Gajanan Infrabuild Private Limited (A-29), Govindam Buildstates Private Limited (A-30), Marven Buildcon Private Limited (A-32), Marven Greenhomes Private Limited (A-33), Mascot Infrabuild Private Limited (A-34), Nirwana Buildcon Private Limited (A-35), Pan Infratech Private Limited (A-36), Park Dublin Builders Private Limited (A-37), Parthsarthi Megamalls Private Limited (A-38), Pine Infracon Private Limited (A-39), Prime Time Infraprojects Private Limited (A-40), Raghuvanshi Realestates Private Limited (A-41), Redkey Buildcon Private Limited (A-42), Reed Promoters & Developers Private Ltd. (A-43), Sambhav Township Private Limited (A-44), Shourya Buildstates Private Limited (A-46), Star Buildstates Private Limited (A-47), Sun Dream build Private Limited (A-48), Valerian Buildtech Private Limited (A-50), Vasudev Infra Buildcon Private Limited (A-51), Vasudha Realcon Private Limited (A-52), Victory Buildstates Private Limited (A-53), Vishavam Infrabuild Private Limited (A-54), Vista Dream Homes Private Limited (A-55), Vrindavan Dreamestates Private Limited (A-56), Waterfall Real Estates Private Limited (A-57), Glorious Realhome Private Limited (A-58), Mother Land Buildhomes Private Limited (A-59), Gharonda Buildstates Private Limited (A-60), Ghanta Karn Buildstates & Land Developers Pvt Ltd. (A-61), Sambhav Energy Limited (A-62), Dwell Buildstates Private Limited (A-63), Adarsh Tech Innovision Private Limited (A-64), Fracton Technologies Private Limited (A-65), Mukesh Modi (A-113), Rahul Virendra Modi (A-114), Vivek Harivyasi (A-115), Nitin Rathore (A-116), Priyanka Modi (A-117), Jinendra Vyas (A-118), Vinay Kumpawat (A-119), Vaibhav Lodha (A-120), Rohit Modi (A-123), Neha Gemawat (A-124), Rajeshwar Singh (A-125), Bharat Modi (A-126), Manish Chaudhary (A-128), Deepak Shrimali (A-129), Prakash Chandra Purohit (A-133), Vivek Purohit (A-134), Akshat Singh (A-136), Naveen Kumar (A-139), Bharat Das Vaishnav (A-142), Sudhir Punia (A-143), Joydeep Das Gupta (A-144), Lovekush Sharma (A-

145), Leena Harivyasi (A-146), Vimal Sanwarmal Sharma (A-147), Avanish Kumar Tyagi (A-148), Vijay Shukla (A-149), Ajit Singh Rathore (A-150), Poonam Madan (A-151), Nazima Khan (A-152), Shabbir Khan (A-153), Bharat Kumar Mardia (A-154), Mahendra Kumar Tak (A-155) are also liable to be prosecuted for commission of an offence as punishable under Section 74(3) of the Companies Act, 2013;

VII. And that the accused Aaditya Mega Projects Private Limited (A-2), Adarsh Buildestate Limited (A-1), Adarsh Thoughtworks Private Limited (A-7), Ansh Build Estate Private Limited (A-8), Applique Buildestate Private Limited (A-9), Aryarth Capital Enterprises Private Limited (A-11), Bathing Sun Realty Private Limited (A-15), Best Buildcreations Private Limited (A-16), Big Blue Developers Private Limited (A-17), Bondi Builders & Developers Private Limited (A-19), Chevron Buildcon Private Limited (A-21), Deniz Builders & Developers Private Limited (A-23), Divya Buildcreations Private Limited (A-24), Divyahome Projects Private Limited (A-25), Gajanan Infrabuild Private Limited (A-29), Marven Greenhomes Private Limited (A-33), Mascot Infrabuild Private Limited (A-34), Pan Infratech Private Limited (A-36), Park Dublin Builders Private Limited (A-37), Pine Infracon Private Limited (A-39), Prime Time Infraprojects Private Limited (A-40), Raghuvanshi Realestates Private Limited (A-41), Redkey Buildcon Private Limited (A-42), Reed Promoters & Developers Private Limited (A-43), Shourya Buildstates Private Limited (A-46), Star Buildstates Private Limited (A-47), Vasudha Realcon Private Limited (A-52), Victory Buildstates Private Limited (A-53), Vista Dream Homes Private Limited (A-55), Vrindavan Dreamestates Private Limited (A-56), Sambhav Energy Limited (A-44), Fracton Technologies Private Limited (A-65), Adarsh Agro Seeds Private Limited (A-3), Adarsh Crops Private Limited (A-4), Adarsh Green Farming Private Limited (A-5), Adarsh Organic Foods Private Limited (A-6), Asha Agro Seeds Private Limited (A-12), Asha Crops and Agriculture Private Limited (A-13), Asha Kisan Agro Private Limited (A-14), Daisy Infratech Private Limited (A-22), Maisonette Infraestates Private Limited (A-31), Shack

Infrastructure Private Limited (A-45), Tectonic Infrastructure Private Limited (A-49), Entice Realtech Private Limited (A-27), Govindam Buildstates Private Limited (A-30), Nirwana Buildcon Private Limited (A-35), Sun Dream Build Private Limited (A-48), Waterfall Real Estates Private Limited (A-57), Rohit Virendra Modi (A-123), Rajeshwar Singh (A-125), Bharat Das Vaishnav (A-142), Vivek Purohit (A-134), Bharat Kumar Mardia (A-154), Rahul Modi (A-114), Prakash Chandra Purohit (A-133), Vaibhav Lodha (A-120), Neha Gemawat (A-124), Mukesh Kumar Modi (A-113), Virendra Prakashraj Modi (A-122), Mahender Kumar Tak (A-155), Praveen Maheshwarei (A-156), Rajeev Maheshwarei (A-157) are also liable to be prosecuted for the commission of offence as punishable under Section 76A of the Companies Act, 2013;

VIII. And that the accused Adarsh Buildestate Limited (A-1), Aaditya Mega Projects Private Limited (A-2), Adarsh Agro Seeds Private Limited (A-3), Adarsh Crops Private Limited (A-4), Adarsh Green Farming Private Limited (A-5), Adarsh Organic Foods Private Limited (A-6), Adarsh Thoughtworks Private Limited (A-7), Ansh Build Estate Private Limited (A-8), Applique Buildestate Private Limited (A-9), Arizona Realestate Private Limited (A-10), Aryarth Capital Enterprises Private Limited (A-11), Asha Agro Seeds Private Limited (A-12), Asha Crops and Agriculture Private Limited (A-13), Asha Kisan Agro Private Limited (A-14), Bathing Sun Realty Private Limited (A-15), Best Buildcreations Private Limited (A-16), Big Blue Developers Private Limited (A-17), Blue Water Realty Private Limited (A-18), Bondi Builders & Developers Private Limited (A-19), Bramha Infracon Private Limited (A-20), Chevron Buildcon Private Limited (A-21), Daisy Infratech Private Limited (A-22), Deniz Builders & Developers Private Limited (A-23), Divya Buildcreations Private Limited (A-24), Divyahome Projects Private Limited (A-25), Earth Buildcreation Private Limited (A-26), Entice Realtech Private Limited (A-27), Eshwar Buildtech Private Limited (A-28), Gajanan Infrabuild Private Limited (A-29), Govindam Buildstates Private Limited (A-30), Maisonette Infraestates

Private Limited (A-31), Marven Buildcon Private Limited (A-32), Marven Greenhomes Private Limited (A-33), Mascot Infrabuild Private Limited (A-34), Nirwana Buildcon Private Limited (A-35), Pan Infratech Private Limited (A-36), Park Dublin Builders Private Limited (A-37), Parthsarthi Megamalls Private Limited (A-38), Pine Infracon Private Limited (A-39), Prime Time Infraprojects Private Limited (A-40), Raghuvanshi Realestates Private Limited (A-41), Redkey Buildcon Private Limited (A-42), Reed Promoters & Developers Private Ltd. (A-43), Sambhav Township Private Limited (A-44), Shack Infrastructure Private Limited (A-45), Shourya Buildstates Private Limited (A-46), Star Buildstates Private Limited (A-47), Sun Dream build Private Limited (A-48), Tectonic Infrastructure Private Limited (A-49), Valerian Buildtech Private Limited (A-50), Vasudev Infra Buildcon Private Limited (A-51), Vasudha Realcon Private Limited (A-52), Victory Buildstates Private Limited (A-53), Vishavam Infrabuild Private Limited (A-54), Vista Dream Homes Private Limited (A-55), Vrindavan Dreamestates Private Limited (A-56), Waterfall Real Estates Private Limited (A-57), Glorious Realhome Private Limited (A-58), Mother Land Buildhomes Private Limited (A-59), Gharonda Buildstates Private Limited (A-60), Ghanta Karn Buildstates & Land Developers Pvt Ltd. (A-61), Sambhav Energy Limited (A-62), Dwell Buildstates Private Limited (A-63), Adarsh Tech Innovision Private Limited (A-64), Fracton Technologies Private Limited (A-65), Abhay K Shah & Associates (A-84), Mukesh Modi (A-113), Rahul Virendra Modi (A-114), Vivek Harivvysi (A-115), Nitin Rathore (A-116), Priyanka Modi (A-117), Jinendra Vyas (A-118), Vinay Kumpawat (A-119), Vaibhav Lodha (A-120), Virender Modi (A-122), Rohit Modi (A-123), Neha Gemawat (A-124), Rajeshwar Singh (A-125), Bharat Modi (A-126), Abhay K Shah (A-127), Manish Chaudhary (A-128), Deepak Shrimali (A-129), Ishwar Singh Sindal (A-131), Meenakshi Modi (A-132), Prakash Chandra Purohit (A-133), Vivek Purohit (A-134), Akshat Singh (A-136), Shinder Pal Singh (A-137), Gurbir Singh Sandhu (A-138), Naveen Kumar (A-139), Bharat Das Vaishnav (A-142), Sudhir Punia (A-143), Leena Harivvysi (A-146), Vimal Sanwarmal Sharma (A-147), Vijay

Shukla (A-149), Ajit Singh Rathore (A-150), Nazima Khan (A-152), Shabbir Khan (A-153), Mahendra Kumar Tak (A-155), Ramlal Arya (A-158), Hemant Kumar Jain (A-159), Shiv Raj Sharma (A-160), Praveen Kumar (A-161), Mahesh Dutt Sharma (A-178), Damyanti Bhandari (A-179), Ichchhita Dungarwal (A-180), Neha Kataria (A-181), Nimesh Kumar Ramesh Chandra Soni (A-182), Rituraj Singh (A-183), Dushyant Singh Rathore (A-184), Shashank Shekhar Singh Rathore (A-185), Jitesh Kumar Parmar (A-186 are also liable to be prosecuted for the commission of offence as punishable under Sections 211(7), 227 and 628 of the Companies Act, 1956 (for period till 31st March 2014) & 448 and also of offence as punishable u/s 147 & 447 respectively of the Companies Act, 2013 (for period after 31st March, 2014) & 477A of IPC;

IX. And that the accused Laxmikripa Buildcon Pvt. Ltd. (A-86), Riddhi Siddhi Infraproject Pvt. Ltd. (A-87), Ridhi Siddhi Infratech Pvt. Ltd. (A-88), SL Bohra & Associates (A-89), Saurabh Tak (A-172), Mahendra Kumar Tak (A-155), Mukesh Kumar Modi (A-113), Vivek Harivyasi (A-115), Vinay Kumar Kumpawat (A-119), Naveen Choudhary (A-162), Manish Choudhary (A-128), Mahesh Kumar Tak (A-187), Megha Chauhan (A-163), Indu Tak (A-164), Paras Bolia (A-121), Shyam Bihari Gupta (A-165), Ravi Tak (A-166), Rajeev Verma (A-167), Sushil Maloo (A-168), Rajendra Singh Bhandari (A-169), Raj Kumar Bohra (A-171)), Sudhir Mehta (A-170)), Rahul Modi (A-114), Priyanka Modi (A-117) are also liable to be prosecuted for the commission of offence as punishable under Section 447 of the Companies Act, 2013;

X. And that the accused Laxmikripa Buildcon Pvt. Ltd. (A-86), Riddhi Siddhi Infraproject Pvt. Ltd. (A-87), Ridhi Siddhi Infratech Pvt. Ltd. (A-88), SL Bohra & Associates (A-89), Saurabh Tak (A-172), Mahendra Kumar Tak (A-155), Mukesh Kumar Modi (A-113), Vivek Harivyasi (A-115), Vinay Kumar Kumpawat (A-119), Naveen Choudhary (A-162), Manish Choudhary (A-128), Mahesh Kumar Tak (A-187, Megha Chauhan (A-163), Indu Tak (A-164), Paras Bolia

(A-121), Shyam Bihari Gupta (A-165), Ravi Tak (A-166), Rajeev Verma (A-167), Sushil Maloo (A-168, Rajendra Singh Bhandari (A-169), Raj Kumar Bohra (A-171), Sudhir Mehta (A-170), Rahul Modi (A-114), Priyanka Modi (A-117) are also liable to be prosecuted for the commission of offence as punishable under Section 120B, 417, 418, 420 of IPC;

XI. And that the accused Laxmi Kripabuildcon Pvt. Ltd. (A-86), Riddhi Siddhi Infraproject Pvt Ltd. (A-87), Saurabh Tak (A-172), Mahendra Kumar Tak (A-155), Mukesh Kumar Modi (A-113), Vivek Harivvysi (A-115), Naveen Choudhary (A-162), Manish Choudhary (A-128), Mahesh Kumar Tak (A-187), Megha Chauhan (A-163), Indu Tak (A-164), Paras Bolia (A-121), Shyam Bihari Gupta (A-165), Ravi Tak (A-166), Rajeev Verma (A-167), Sushil Maloo (A-168), Rajendra Singh Bhandari (A-169), Sudhir Mehta (A-170) are also liable to be prosecuted for the commission of offence as punishable under Section 58A of the Companies Act, 1956;

XII. And that the accused Laxmi Kripabuildcon Pvt. Ltd. (A-86), Riddhi Siddhi Infraproject Pvt Ltd. (A-87), Saurabh Tak (A-172), Mahendra Kumar Tak (A-155), Mukesh Kumar Modi (A-113), Vivek Harivvysi (A-115), Naveen Choudhary (A-162), Manish Choudhary (A-128), Mahesh Kumar Tak (A-187), Megha Chauhan (A-163), Indu Tak (A-164), Paras Bolia (A-121), Shyam Bihari Gupta (A-165), Ravi Tak (A-166), Rajeev Verma (A-167), Sushil Maloo (A-168), Rajendra Singh Bhandari (A-169) are also liable to be prosecuted for the commission of offence as punishable under Section 74(3) of the Companies Act, 2013;

XIII. And that the accused Laxmi Kripabuildcon Pvt. Ltd. (A-86), Riddhi Siddhi Infraproject Pvt. Ltd. (A-87), Saurabh Tak (A-172), Mahendra Kumar Tak (A-155), Vivek Harivvysi (A-115), Mahesh Kumar Tak (A-187), Megha Chauhan (A-163), Indu Tak (A-164), Paras Bolia (A-121), Shyam Bihari Gupta (A-165) are also liable to be prosecuted for the commission of offence as punishable under Section 76A of the Companies Act, 2013;

XIV. And that the accused Laxmi Kripabuildcon Pvt. Ltd. (A-86), Riddhi Siddhi Infraproject Pvt. Ltd. (A-87), Ridhi Siddhi Infratech Pvt. Ltd. (A-88), Saurabh Tak (A-172), Mahendra Kumar Tak (A-155), Mahesh Kumar Tak (A-187), Megha Chauhan (A-163), Paras Bolia (A-121), Shyam Bihari Gupta (A-165) are also liable to be prosecuted for the commission of offence as punishable under Sections 211(7), 227 and 628 of the Companies Act, 1956 (for period till 31st March, 2014) and also of offence as punishable u/s 147 & 447 respectively of the Companies Act, 2013 (for period after 31st March, 2014) & 477A of IPC;

XV. And that the accused Cynosure Real Estates Pvt. Ltd. (A-90), EOS Developers Pvt. Ltd. (A-91), Adler Infra Ventures Pvt. Ltd. (A-92), Headstrong International Exports Pvt. Ltd. (A-93), A3G Infra Pvt. Ltd. (A-79), Aarti Marketing Private Limited (A-94), Caranation Trading Private Limited (A-95), Cyan Financial Solutions Pvt. Ltd. (A-96), Lever Finvest Private Limited (A-97), Rolex Exports Private Limited (A-98), Dinkar Commercials Pvt. Ltd. (A-99), Amarendra Financial Private Limited (A-100), Alba Polymers Limited (A-101), Channel Nine Entertainment Limited (A-102), Funny Software Limited (A-103), Gold Line International Finvest Ltd. (A-104), Inceptum Enterprises Limited (A-105), Kanak Krishi Implements Limited (A-106), Padmawati Art Creation Pvt. Ltd. (A-107), Porche Capital Market Limited (A-108), Sagitarius Advertising Limited (A-109), Satkar Finlease Limited (A-110), Surya Marketing Limited (A-111), Vishal Digital Studio Color Lab Pvt. Ltd. (A-112), Vivek Hariviyasi (A-115), Peeyush Aggarwal (A-173), P.V. Sangwan (A-174), Vijay Jhindal (A-175), Rajkumar Modi (A-176), Shinder Pal Singh (A-137), Gurbir Singh Sandhu (A-138) are also liable to be prosecuted for the commission of offence as punishable under Section 447 of the Companies Act, 2013;

XVI. And that the accused Cynosure Real Estates Pvt. Ltd. (A-90), EOS Developers Pvt. Ltd. (A-91), Adler Infra Ventures Pvt. Ltd. (A-92), Headstrong International Exports Pvt. Ltd. (A-93), A3G Infra Pvt. Ltd. (A-79), Aarti Marketing

Private Limited (A-94), Caranation Trading Private Limited (A-95), Cyan Financial Solutions Pvt. Ltd. (A-96), Lever Finvest Private Limited (A-97), Rolex Exports Private Limited (A-98), Dinkar Commercial Pvt. Ltd. (A-99), Amarendra Financial Private Limited (A-100), Alba Polymers Limited (A-101), Channel Nine Entertainment Limited (A-102), Funny Software Limited (A-103), Gold Line International Finvest Ltd. (A-104), Inceptum Enterprises Limited (A-105), Kanak Krishi Implements Limited (A-106), Padmawati Art Creation Pvt. Ltd. (A-107), Porche Capital Market Limited (A-108), Sagitarius Advertising Limited (A-109), Satkar Finlease Limited (A-110), Surya Marketing Limited (A-111), Vishal Digital Studio Color Lab Pvt. Ltd. (A-112), Vivek Hariviyasi (A-115), Peeyush Aggarwal (A-173), P.V. Sangwan (A-174), Vijay Jhindal (A-175), Rajkumar Modi (A-176), Shinder Pal Singh (A-137), Gurbir Singh Sandhu (A-138) are also liable to be prosecuted for the commission of offence as punishable under Section 120B and 418, 420 of IPC;

XVII. And that the accused Abhay K Shah & Associates (A-84), Abhay K Shah (A-127) are also liable to be prosecuted for the commission of offence as punishable under Section 147 of the Companies Act, 2013;

XVIII. And that the accused Rajiv Kumar Rana (A-177) is also liable to be prosecuted for the commission of offence as punishable under Section 447 of the Companies Act, 2013;

XIX. And that the accused Mahesh Dutt Sharma (A-178) is also liable to be prosecuted for the commission of offence as punishable under Section 447 of the Companies Act, 2013;

XX. And that the accused Sampati Lal Bohra & Associates (A-89) - audit firm and its two partners Raj Kumar Bohra (A-171) and Sudhir Mehta (A-170), and Peeyush Aggarwal (A-173) are also liable to be prosecuted for the commission of offence as punishable under Section 147 of the Companies Act, 2013.

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10. Let all the accused persons be accordingly summoned to face prosecution as per the above details, throughailable warrants in the sum of ₹ 10,000/- with one surety in the like amount with directions to appear on **30.07.2019**.

**Pronounced in open Court
on this 3rd day of June, 2019.**

(Ravi Kumar Sondhi)

(UID No. HR-0026)

**Sessions Judge,
Gurugram.**

Certified that all the pages of this order have been checked and signed by the under signed.

(Ravi Kumar Sondhi)

(UID No. HR-0026)

**Sessions Judge,
Gurugram.**

(Ravi Kumar Sondhi)

(UID No. HR-0026)

SJ, GGM, 03.06.2019

Satish Kumar